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Senate of Virginia Floor Session, Monday, February 9, 2026

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[00:01:36] Senate Chamber.

[00:03:23] This is the Senate of Virginia, Richmond, Virginia.

[00:05:15] Senate Chamber.

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[00:32:06] live sessions, catch up on past meetings, and explore our full archives anytime on the Senate

[00:32:11] of Virginia's YouTube channel. This is the Senate of Virginia, Richmond, Virginia. The Senate will

[00:34:04] come to order. The senators will please take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery. The senators and all in attendance will please stand, if you're able, and be led in prayer today by Pandit Subha Vishveswara from the Rajani Mandir in Chantilly and following the prayer, everyone will please remain standing and be led in the Pledge of Allegiance to the Flag of the United States of America by Senate page Kenley Moser of Norfolk.

[00:34:39] OM SHRI GURUBYO NAMAH HARIHIVOM BHADDRAM KARNE VISHRUNIYAMA DEVAH BHADDRAM PASHYE MAKSHABHIR YAJATRAHA STHIRAI RANGAI ESTRUSHTU VAGUM SASTANOBHI VISHEMA DEVAHIDAM YADAYUHUM SWASTINA INDRO VRUDYA SHRAVAH SWASTINA PUSHA VISHVEDAH Svastinastar kshya arishtanemihim

[00:35:18] Svastinobhra haspadirdhadhatu Om Shanti Shanti Shantihi Om Sarve bhavantu sukhinaha Sarve santu niramayaha Sarve bhadrani vashyantu Māgaschiddukka bhagbhavet Asatoma sadgamaya

[00:35:44] Oṁ śānti śānti śānti śāntiḥi

[00:36:17] may there be well-being in all, may there be peace in all, may there be fulfillment in all, may there be auspiciousness in all. Om, peace, peace, peace. Om from unreal to reality to make me go towards the reality, from the darkness to make me go towards the light, from morality to

[00:36:53] make me go to towards the world of immorality self of realization om shanti shanti shanti peace peace peace may all be happy may all be free from illness may all be see what is auspiciousness

[00:37:16] may no one suffer oh peace peace peace thank you amen amen i pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God,

[00:37:45] indivisible, with liberty and justice for all. Before we take our roll call, I just want to

[00:38:37] apologize to the young Paige who led our Pledge of Allegiance. I mistakenly read the wrong name. Our Pledge of Allegiance today was led by Evan Feld from Virginia Beach and we certainly thank

our page for for leading our our pledge this morning the clerk will call the roll all those present please vote aye the clerk will close the roll you have a quorum madam president senate

[00:39:12] journal for friday february 6 2026. the senator from batatat moves that the reading of the journal be waived all in favor of waiving the reading of the journal will record their votes aye those opposed? No. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 35, noes 5. Ayes 35, noes 5. The reading of the journal is waived. The clerk will

[00:39:49] report any communications from the House of Delegates. Senator from Eastern Fairfax. Good afternoon and happy Valentine's week, Madam President. Thank you, Senator. I've moved to waive reading of the House communication. The question shall the reading of the house communication be waived all in favor of waiving the reading of the communication from the house of delegates will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[00:40:25] the roll eyes 33 no 7 eyes 33 no 7 the reading of the communication is waived the clerk will report any communication from the governor I do not have any madam president. We've arrived now in the time of our morning hour when we have the honor of welcoming our distinguished guests who are joining us here today in the senate gallery. I give my daily reminder about our procedure. A senator will first rise and provide an introduction for their visitors

[00:41:00] and I will then offer the welcome of the senate. I ask that everyone hold their applause until I've completed the senate's welcome. The chair recognizes the junior senator from Loudoun. Good morning, Madam President. I rise for the purpose of an introduction.

[00:41:19] Senator has the floor. Thank you, Madam President. Today's prayer was offered by priest Subaratnam Visveshwaran, a distinguished Hindu priest from the Rajdani temple located in Northern Virginia. Priest Visveshwaran has served as a Rajdani mandir priest since 2010 and before that served as as the priest of Sri Siva Vishnu Temple in Lanham, Maryland, since 1999.

[00:41:43] In both positions, he provided deep spiritual counsel while also acting as a pillar of cultural preservation for thousands of devotees, families, and visitors to both temples. As a representative of the Hindu faith, a tradition built on Sanatana Dharma, on the pursuit of peace, truth, and the interconnections of all living beings, Priest Visvesaran has been a strong voice in fostering interfaith dialogue and cross-cultural understanding.

[00:42:08] In a district and region as diverse as a 32nd district in Northern Virginia, leaders like Priest Visweseran ensure that our progress is rooted in the values of compassion and selfless service or seva. Today, as we prepare to deliberate on the matters of the Commonwealth, we are grateful for the perspective and the blessing he has shared with this body.

[00:42:28] Madam President, I hope you and my colleagues will join me in extending Priest Visweseran the warm welcome of the Senate. Thank you, Senator, for that introduction, and thank you to our priest for joining us this morning. And thank you for reminding us about one of the most ancient words in human language, which is shanti, peace, and how critical it is, especially for us to remember what that universality of peace means for all of us as human beings.

[00:43:02] Thank you so much for your words of prayer this morning. Senators, I ask that we give the warm welcome of the Senate to our pundit who has joined us from Chantilly.

[00:43:19] The chair recognizes the senator from Hampton. Thank you, Madam President. I rise for an introduction. The senator has the floor. Thank you, Madam President. Today, we have in the gallery 200-plus men, the Hampton Roads Committee.

[00:43:36] 200-plus men, since its inception, has engaged in activities designed to inform, educate, and advocate for issues that strengthen our community. Annually, 200-plus men celebrate black high school youth who graduate with a 3.0 GPA or higher at their 200-plus men's scholars breakfast.

[00:43:56] Since 1998, they have honored more than 7,500 young men. Every year, 200-plus men organizes a caravan to Richmond, a civic education initiative that exposes African-American young men to the legislative process and gives them an opportunity to meet with state lawmakers and other government officials.

[00:44:14] Today we have over 40 young men and chaperones visiting with us in the Senate gallery, and I would like for us to give them the warm welcome of the Senate. - Thank you, Senator, for that introduction, and welcome to the representatives that we have today in the Senate gallery of 200 men of Hampton Roads Scholar Academy.

[00:44:33] Thank you, first of all, to the mentors, to the educators and leaders are helping provide so much critical information and leadership opportunities to our young men. We especially applaud the young men who are here representing their communities, representing their devotion and commitment to academic excellence.

[00:44:54] We are looking to you for leadership in the next few years as well as you assume your critical roles. Senators, I ask that we give the warm welcome of the Senate to the representatives of two 200 men of Hampton Roads Scholar Academy.

[00:45:18] The chair recognizes the senator from Norfolk. Thank you, Madam President. Madam President, I rise for the purpose of an introduction. Senator has the floor. Thank you, Madam President.

[00:45:34] Today, I am pleased to recognize the Virginia Community Health Worker Association, joined in solidarity by the Doula Association of Virginia and many partner organizations committed to community-rooted health and wellness, if they would stand.

[00:45:51] For more than a decade, the Virginia Community Health Worker Association has served as the backbone organization supporting community health workers across the Commonwealth. VACHWA is led by community health workers for community health -- is led by community health workers for community health workers, ensuring that advocacy, training, and policy efforts are shaped by lived experience and community expertise.

[00:46:26] Community health workers are trusted messengers who bridge gaps between health systems and the communities they serve, particularly in areas facing barriers related to access, culture, language, and geography.

[00:46:42] This organization has played a pivotal role in advancing certification efforts, strengthening workforce standards and building partnerships across health systems, public health agencies, and community organizations, ensuring the community voice remains central to health policy and practice.

[00:47:06] From rural communities to urban centers, this work ensures Virginians have access to trusted advocates who improve health outcomes, reduce costs, and address the root causes of health disparities.

[00:47:22] The presence of this organization, as well as the Doula Association of Virginia and their partners today, reflects a shared truth. When we invest in community-based workers, we invest in healthier, stronger communities across the Commonwealth.

[00:47:42] Madam President, please join me in giving them the warm welcome of the Senate. Thank you, Senator, for that introduction and welcome to Virginia's Community Health Worker Association. We know of the critical work that you do across so many communities and the essential role that our community health workers play as part of the larger healthcare system.

[00:48:07] We can't do it without you. So thank you for your advocacy. you for speaking to our legislators on the issues that impact all communities in their health care needs. Senators, I ask that we give the warm welcome of the Senate to the Virginia Community Health Workers Association. The chair recognizes the senator from Portsmouth. Thank you, Madam President. Madam President, I rise for the purpose of an introduction. The senator has the floor. Thank you. It is my

[00:48:47] profound honor to introduce an organization that embodies the very soul of compassionate care and the transformative power of birth justice, the Doula Association of Virginia. DEVA launched on January 6, 2025 a shining beacon in Virginia's maternal health landscape, led by founder and president Natika Hill, whose passion and purpose illuminate the path forward, has grown to 97 members strong and continues to expand. Doulas are life changers, hope Help bringers and sacred witness to the miracle of new life. They are the steady hand that guides, the gentle voice that reassures,

[00:49:26] the fierce advocate who assures every birthing person is heard, honored, and respected. In hospital rooms across Virginia, doulas stand as cultural bridges, emotional anchors, and trusted companions during one of life's most vulnerable moments.

[00:49:42] Studies demonstrate significant reductions in Cesarean births, decreased requests for pain medication, meaningful improvement in maternal mortality disparity, enhanced breastfeeding outcomes, and reduced postpartum depression.

[00:49:58] In Virginia, where black women face maternal death rates two to three times higher than white women, doulas are not only a luxury, they are a life-saving necessity. Please join me in welcoming the Doula Association of Virginia. Thank you, Senator.

[00:50:15] Thanks. Just a reminder that we hold the applause until I've had the opportunity to provide the welcome of the Senate. Senator, thank you so much for that introduction, and thank you to the Dula Association of Virginia. Thank you for the work that you do as such a critical part of our overall health system, most especially in the area of maternal health care. You are such a vital part of that health care team senators i ask that we give the warm welcome of the senate to the doula

[00:50:48] association of virginia the chair recognizes the senator from eastern prince william thank you madam president madam president i rise for an introduction the senator has the floor thank you madam president madam president the young women's christian league incorporated and if you're here if you could please stand is a richmond-based organization founded in 1959 by 12 young african-american women who recognized the needs within their communities and responded

[00:51:23] with compassion excellence and faith their founding vision to give their best so that others might thrive remains central to the organization's mission guided for 67 years by their motto others rather than self the league continues to shape young women into compassionate and capable leaders. Three of the 12 original founders, Lucy B. Jones, Dorothy H. Mines, and Phyllis A. Taylor remain active and continue to provide leadership and wisdom. Through all of its work, the Young Women's Christian League remains committed to the values of humility, dignity, service,

[00:52:00] graciousness, charity, legacy, and to preparing young women to lead with purpose and compassion. I hope it is the will of the body to welcome them. Thank you, Senator, for that introduction. welcome to the Young Women's Christian League. The senator has pointed out the many ways in which your organization provides leadership skills, development, and helps to guide so many in our communities. Thank you for the work you do, thank you for your advocacy on many, many issues, and I hope you are having an enjoyable visit to your legislators today as you see them in

[00:52:38] their offices. Senators, I ask that we give the warm welcome of the Senate to the Young Women's Christian League. The chair recognizes the senator from Mecklenburg. Thank you, Madam Chair. I rise for the purpose of an introduction.

[00:53:01] Senator has the floor. Thank you, Madam Chair. Today with us in the gallery, if they'll rise, we have the Virginia Academy of School Psychologists. VASP, the Academy of School Psychologists, exists to strengthen the effectiveness of school psychologists in promoting and advocating for the educational and mental health developments of virginia students and families vasp members are dedicated to promoting the highest standards of service delivery and positive outcomes for the students families and schools they serve vasp members are they are here today advocating for ways to increase support

[00:53:39] for student mental health and well-being they came here today to support a bill that i had that made it through committee but then went to the committee where all dreams die as did our bill in finance but we'll keep fighting this is our second year we'll be back again next year but they do provide essential services we know that our state our country is in a mental health crisis and they provide the professional services that help those in need and i certainly have gotten

[00:54:16] lifetime of services from psychologists and psychiatrists of the both with my PTSD over the years and I certainly am thankful that they are they are doing what they do best and let's give these school dedicated school psychologists the warm welcome of the senate thank you senator for that introduction and welcome to the Virginia academy of school psychologists as we know you are doing such critical work for our young people, the students who are increasingly in need for the services that you provide. And though dreams may

[00:54:55] have died temporarily, as the senator has shared, these are areas that we continue to work on and I just thank you for the work that you do. Senators, I ask that we give the warm welcome of the Senate to the Virginia Academy of School psychologist. The chair recognizes the senator from Eastern Fairfax. Thank you

[00:55:33] Madam President Rice for two announcements. Senator has the floor. Thank you Madam President. Number one I just wanted to remind everybody that if you have any empty judgeships, vacant judgeships, we need to elect by the end of session you need to make your selection by the end of the month February 28. You need to have your names by the 28th so that staff can go run the traps on those folks so that they'd be ready for certification probably on we're probably gonna do a joint meeting on

March the 6th to do that but we haven't set the date yet but that's probably what we're looking at secondly you all may have noticed there's a couple books on your desk when you walked in

[00:56:09] Senator McPike thought everybody in the chamber ought to go read Mason's manual and Jefferson's manual so they can all have really fun conversations with him But if anybody does not want your copy, Tara said we can hand it back up to her so we can save them for future members of this body who I'm sure will be dying to read this with bated breath as soon as they get here.

[00:56:38] So if you could just please, if you don't want your book, please turn it in at the desk. We would appreciate that. Thank you, Madam President. Thank you, Senator. And there will be a pop quiz at the end of session on all of Mason. please do do your homework do not return those books to the clerk's desk is there any other business for the morning hour the clerk will call the calendar senate calendar for monday february

[00:57:09] 9th 2026 uncontested calendar senate bills on third reading senator from eastern fairfax uh matter president move the senate bills on third reading on the uncontested calendar on pages one through five senate bills 144 through 784 be placed in their final passage in the block any Any senator desiring to remove a bill from the block, please do so after the clerk has read the number of the bill.

[00:57:34] The question is, shall the Senate bills on the uncontested calendar, third reading, pages 1 through 5, Senate Bill 144 through Senate Bill 784, be placed upon their final passage in the block with the understanding that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill?

[00:57:54] All in favor of that motion, we'll say aye. Any opposed, no. the ayes have it the motion is agreed to the bills are before us in the block the clerk will read the number of the bills Senate bill 144 Senate bill 167 Senate bill 182 Senate bill 196 Senate bill 383 Senate bill 390 Senate bill 484 Senate

[00:58:24] bill 486 Senate bill 606 Senate bill 720 Senate bill 784 the question is shall the bills in the block pass. All in favor of the passage of the bills will record their votes. Aye, those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no, zero. Ayes 40, no, zero. The bills in the block pass. Regular calendar, Senate bills on third reading. Senate Bill 27, a bill

[00:59:04] relating to firearm industry members standards of responsible conduct civil liability the chair recognizes the senator from Eastern Prince William thank you madam president madam president I move to pass the bill and speaking to the bill senator has the floor thank you madam president Senate bill 27 creates standards of responsible conduct for firearm industry members and requires such members to establish and implement reasonable controls regarding the manufacturer sale distribution use and marketing of the firearm industry members firearm related products the bill also provides that a firearm industry member may not knowingly

[00:59:40] create maintain or contribute to a public nuisance as the fine in the bill through the sale manufacturing importing or marketing of a firearm related product this bill creates a civil cause of action for the attorney general or a local county or city attorney to enforce the provisions of the bill or for any person who has been injured as a result of a firearm industry's members violation to seek an injunction and to recover costs and damages the question is shall senate bill 27 pass all in favor of the motion will record their votes aye those opposed no are

[01:00:17] the senators ready to vote have all the senators voted do any senators desire to change their vote The clerk will close the roll. Ayes 21, noes 19.

[01:00:33] Ayes 21, noes 19. Senate Bill 27 passes. Senate Bill 38, a bill relating to firearm transfers to another person from a prohibited person. The chair recognizes the senator from Arlington. Good afternoon, Madam President.

[01:00:49] Madam President, I move that the bill pass and speaking to the motion. The senator has the floor. Thank you. What this bill does is it addresses the option of transferring a firearm when somebody is convicted of assault and battery of a household member or is the subject of a protective order.

[01:01:10] Under our current law, such an individual would have to forfeit a firearm. They may do it by giving the firearm to a federally licensed dealer or law enforcement, or they may choose to transfer the firearm to another individual. That's where this bill comes in. This bill says that if you transfer your firearm, the individual must be at least 21 years of age, must not reside with the offender, and is otherwise legally eligible to possess a firearm. The bill goes on to say that

[01:01:45] a form must be filed with the court that gives the name, address, and signature of the recipient of the firearm. And finally, the bill does note that if law enforcement believes the firearm has not been relinquished, they may seek a search warrant. That is the content of the bill. It very much protects women and particularly women who are five times more likely to actually die in situations of domestic violence if their abuser has access to a firearm. I do hope it is the will

[01:02:22] the body to pass this bill thank you the question is shall senate bill 38 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role as 21 nose 19 eyes 21 nose 19 senate bill 38 passes senate bill 160 a bill relating to purchase

[01:02:58] possession or transportation a firearm assault and battery of a family or household member or intimate partner penalty the chair recognizes the senior senator from Loudon thank you madam president madam president I move the bill pass and speaking to that senator has the floor and president thank you madam president members of the body this is the the boyfriend loophole bill I think this is the third year in a row that I have brought the bill just for recollection and for those members who weren't here who may not recall this bill seeks to provide the same protections to individuals who are an intimate partner relationships so that could be like a boyfriend and girlfriend

[01:03:35] relationship those folks who don't live together who aren't married who don't have a child together this bill seeks to treat those people who love each other and who are committed adults under the intimate partner definition that even Congress has been able to agree upon to protect them in the same way that we do other domestic partners and what that does is it says that those people are treated as family members under 18257.2 of the Code of Virginia that defines that term.

[01:04:01] It says that these folks will be treated over in juvenile and domestic relations court where people who batter their loved ones get treatment in accordance with those types of relationships and victims of those types of offenses are treated similarly to other victims like people who are spouses or married that they get the same type and level of services. And in addition, Madam President, it removes the firearms from people who beat their loved ones just like we do in other circumstances, like people who are married to the Madam President. With that, I move the bill pass.

[01:04:34] The question is, shall Senate Bill 160 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:04:51] Ayes 22, Nose 18, Senate Bill 160 passes. Senate Bill 173, a bill relating to weapons, possession prohibited, and a hospital that provides mental health services or developmental services penalty.

[01:05:13] The chair recognizes the senator from Norfolk.

[01:05:25] Thank you, Madam President. Madam President, I rise for the purpose of a motion. Senator has the floor. Madam President, I move that the bill pass and speaking to that motion. Senator has the floor. Thank you, Madam President. SB 173 addresses an ongoing public safety issue, the presence of firearms and dangerous weapons inside hospitals that provide mental health services or developmental services, including emergency departments.

[01:05:50] This body has considered this policy before and passed it twice. Legislation addressing weapons in hospitals has previously passed out of the Senate two years in a row and been vetoed by the previous governor. this passage in previous years reflects continued bipartisan recognition that hospitals serving individuals in behavioral health crisis or any crisis of a health care manner require meaningful safeguards although prior legislation was vetoed the conditions that prompted legislative action remain unchanged hospitals provide mental health and developmental services and care for

[01:06:29] individuals experiencing acute psychiatric episodes, involuntary commitment, cognitive impairment, emotional distress and and behavioral behavioral instability. Not to mention they provide environments for healing and respite. These settings are by their nature high stress and unpredictable. The presence of firearms or other dangerous weapons increases the risk of escalation and violence and when that risk materializes it does not affect only physicians but

[01:07:03] everyone in the hospital this bill is about protecting everyone inside the hospital patients doctors custodians and visitors alike it also includes technicians social workers and therapists managing patients in crisis it includes cafeteria workers environmental staff service environmental services staff and janitors who move throughout the hospital during all hours it includes those who are seeking care comfort and answers during one of the most difficult moments of their lives

[01:07:42] safety in these facilities cannot be limited to one profession it must it must extend to all who enter sb 173 makes it unlawful for a person to knowingly and intentionally possess a firearm a location restricted knife or other dangerous weapons including explosives and stun weapons inside the building of any hospital that provides mental health or developmental services including emergency departments and facilities rendering emergency medical care a violation is punishable as a class one misdemeanor and unlawfully possessed weapons are subject to seizure

[01:08:20] and forfeiture in accordance with existing law. The bill includes clear exemptions for law enforcement, correctional officers, armed security officers, and individuals acting in the discharge of official duties. Hospitals may also provide written authorization when possession is necessary within an individual's scope of employment. Strong notice requirements ensure individuals are informed before enforcement applies. Madam President, health care settings should be places of care,

[01:08:55] healing, respite, and peace, not fear. SB 173 affirms our responsibility to protect all people inside hospital walls, and I renew my motion that this bill pass for the third time. The chair recognizes the

senator from Franklin County. Thank you, Madam President. Will the senator yield for question well the senator from Norfolk yield yes madam president the senator from Franklin County has the floor thank you madam president I'm looking through the bill right now SB 173 and I understand it mostly but when you drop down into the exception so it's unlawful for any person to knowingly

[01:09:34] intentionally possess a firearm bring it into the hospital unless you're under subsection C you're a police officer on active duty a law enforcement agent artificial of any state or correctional institution or armed security officer, or if the hospital has given you written authorization as a part of your job and the scope of your employment.

[01:09:57] But it also says that the exception is that any person who is brought into a hospital pursuant to the issuance of an emergency custody order or involuntary detention order under the provisions of Article 4, Chapter 8 of 37.2, is allowed to walk into the hospital with a firearm.

[01:10:15] is that does the gentlelady intend that to be a part of this bill and if so why madam president senator from Norfolk thank you madam president it is the intention of this bill to make sure that we don't unintentionally criminalize those who are there under such pretenses man president senator from Franklin County thank you madam president with the senator yield for another question well the senator yield this is madam president senator yields and I'd ask the gentlelady, I'd ask her, is it not a fact, though, that if someone has been issued a temporary

[01:10:53] detention order or an emergency custody order, that under law, as existing today in the Commonwealth of Virginia, that that person is not allowed to possess a firearm? Senator from Norfolk. Again, Madam President, I would tell the Senator that we are working here to ensure that there are no unintended consequences for individuals who may unknowingly possess a firearm. The board That intentionally is where this draws the line and so we're working to ensure that individuals who are experiencing a mental health crisis who are under a TDO and are brought into the

[01:11:30] hospital if they have a weapon or a firearm on them are not arrested further adding to whatever situation it is that they have going on in their lives and then unnecessarily involving them in the criminal justice system.

[01:11:47] Senator from Franklin County. Thank you, Madam President. Will you generally yield for one final question? Will the Senator yield? Madam President, I will yield for one final question. Senator, the Senator yields. Thank you, Madam President. If I can communicate to you, Madam President, I mean no offense. This is, I'm trying to understand this bill and I understand what the patrons' intent is to keep dangerous people out of hospitals who might be in possession of firearms.

[01:12:13] It has an unintended effect or maybe intended effect of good people who firearms are not allowed but it would seem to me that someone who is under the mental distress so much so it results in emergency custody order or an involuntary detention order that they of all people should not be the ones possessing firearms within the hospital grounds in accordance with what this bill tries to accomplish and I'm asking if the senator would agree with me that perhaps someone in mental distress should not be possessing a firearm going into the hospital when they've been involuntarily detained? Senator from Norfolk. Madam

[01:12:51] President, my answer remains unchanged. The goal of the bill is to, of this portion of the bill, is to make sure that we do not unintentionally cause further harm to someone who is under TDO, who is

experiencing a mental health breakdown and is incapacitated, who may have a weapon, not necessarily a firearm on their person when they are brought into a hospital to get services and to get help. We want to ensure that we are not criminalizing individuals for seeking help when they are in an altered mental health state. And I thank the

[01:13:30] senator for all of his questions and I renew my motion that the bill pass. Senator from Franklin County. Madam President I thank the senator. The chair recognizes the senator from Eastern Fairfax. Speaking to the bill. Senator has the floor. Thank you, Madam President. I think the senator from Norfolk just got out there right at the end, but I want to make sure we're clear. This bill involves not just guns, it involves location-restricted knives and other weapons like stun weapons or explosives. And so it's not just about guns, first of all.

[01:14:02] Secondly, we're talking about people who have to be in custody pursuant to an ECO or a TDO. They have to be, have their liberty restrained by a law enforcement officer. And if any law enforcement officer is going to bring somebody into jail without searching them for firearms, I'd be really surprised. So, Madam President, the Senator got it exactly right. We're just trying to not necessarily keep the dangerous people out of jail.

[01:14:26] We're trying to keep them out of the hospital, trying to keep the weapons out of the hospital, which is what the bill does. According to one news report, when Sentara turned these things on in Hampton Roads, they discovered 2,100 weapons in like an 18-month period or something like that of people trying to bring them into the hospital.

[01:14:43] And this bill is designed to get it out there to the public that if you're going to go to the hospital, don't come bearing a machete, which one person had, by the way. They had to confiscate a machete and a metal detector, if you can believe that. Don't bring any of your weapons to the hospital. We don't want weapons in hospitals. We've heard this bill like three times now. We took out surgical instruments and all kinds of stuff.

[01:15:02] It's been through a lot of workshop and to get it where it is, it's a good bill. It makes our hospitals safer. And if you need to bring your gun, just don't bring it into the hospital. the chair recognizes the senator from rockingham president rice speak to the bill senator has the floor madam president members of senate i uh listened very carefully and my friend from franklin county you're not i just frankly do not understand we are asking for trouble if we are making an exception in this bill for people who have been found by a judicial officer to present a danger

[01:15:42] to themselves or to others, and we are creating an exemption to permit them to enter a hospital defined under this section with a firearm or a location-restricted knife.

[01:15:59] I do not understand why if we're going to pass this general policy, which I tend to disagree with you can already post the premises you can post it as being a no gun zone no firearms permitted but apparently that's not enough we've got to pass a bill but we're going to pass a bill that lets people who have been expressly found to be a danger to themselves or others to be in a

[01:16:32] possession of one of these weapons it makes no sense we should not be doing this senator from norfolk madam president if no one else wishes to speak senator has the floor if folks would read lines 19 section B it says it is unlawful for any person to knowingly and intentionally possess a firearm location restricted knife or any

[01:17:08] or other dangerous weapon including explosives and stun weapons as defined in section 18.2-308.1. Anyone who has seen someone, knows someone, has someone in their family who is experiencing a mental health crisis understands that But they don't probably knowingly or intentionally do anything.

[01:17:40] And they may not even know where they are or what's happening around them. This bill is designed to keep the people who work and visit and service hospitals safe. And so with that, Madam President, I renew my motion to pass the bill.

[01:18:02] The question is, shall Senate Bill 173 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[01:18:18] The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. Senate Bill 173 passes. Senate Bill 261, a bill relating to cruelty to animals, malicious killing of a dog or cat penalty.

[01:18:34] the chair recognizes the senator from franklin county thank you madam president i now move that senate bill 261 pass and speaking to that motion senator has the floor thank you madam president members of the senate senate bill 261 fixes a loophole in virginia's animal cruelty statute by making the malicious killing of a companion dog or cat a class 6 felony uh cruelty to animals man president is a class 6 felony as it is but this bill arises from a horrible tale out of franklin county two beautiful labradors named colby and caleb the apple of their mother's eye, were killed.

[01:19:09] It turns out her husband thought that his wife loved the dogs more than she loved him. And so he took them out one day, said that they were kidnapped, and then killed them, shot them in the head, both of them, left them dead.

[01:19:26] A large dog hunt, man hunt, every hunt was, we were looking for these dogs, we were looking for the people that stole them, and it turned out it was the spouse who did it. He was charged with a felony cruelty to animals, And he was convicted in the Franklin County Circuit Court on appeal in the Court of Appeals. The Court of Appeals ruled, actually, that because the dogs did not suffer, because they were killed instantly, that that was not cruel and unusual punishment to the dogs.

[01:19:53] So this bill cleans that up. And it was a three-judge panel that ruled that this person could not be convicted of animal cruelty. The whole Virginia Court of Appeals panel met and locked up 8-8. So the conviction stood, but clearly there was a loophole that would have, if we did not close this year, continued to fester where people could believe that they could shoot their animals in the head and not be cruel to them.

[01:20:20] And this applies to everybody. I would say even, you know, we've had discussions with regard to hunting dogs. Well, many times we have found that the hunting dogs, when they've overstayed their usefulness, are either just let go or they're shooting them in the head. Well, Madam President, that's cruelty to animals.

[01:20:38] And that if you're going to take responsibility for a dog and use the dog, then you better be humane all the way through from the first day until they're last. Madam President, this is essential. It makes it maliciously, malice aforethought, in the killing of an animal, a companion animal or cat or dog, a Class 6 felony, and closes that loophole, Madam President.

[01:20:57] And for those reasons, I renew my motion that SB 261 pass. The question is, shall Senate Bill 261 pass? All in favor of that motion will record their votes. those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 40 no zero eyes 40 no zero Senate bill 261 passes Senate bill 272 a bill relating to carrying a firearm or explosive material within capital square or

[01:21:35] building owned or leased by the Commonwealth exemptions public institutions of higher education penalty. The chair recognizes the senator from Charlottesville. Madam President, I move that the bill passed, I'd like to speak to that. Senator has the floor. Madam President, this is a bill that's been before this body multiple times in the past. It's passed this body and it's at least it's passed this body once failed down the hall and twice it went to the governor and was vetoed. It was amended last year to address the the governor's concerns from Zito message the year before last, but that didn't save the bill so the bill's back in the same form it appeared before you

[01:22:12] a couple years ago and what it basically says it's a class one misdemeanor to take a firearm into a building on a college campus in Virginia. We've already allowed colleges and universities to do this by regulation and the news for some of you may be that each of you who has a public college or institution in your district already has this in place you have the regulation in place this misdemeanor this this problem really rose out of the shooting that occurred at the University of Virginia in the fall of 2022 three young men's whose

[01:22:48] lives were taken two students were injured were shot and the young man who was who's ultimately found responsible for that before before the shooting he'd been rumored to have guns but he'd not but there was no never there was an investigation, there was never any proof. The college police or the police at the university felt that if they had had a misdemeanor or offense they could have charged the man with, they could have investigated. After the fact, his dorm room was full of weapons, is full of firearms, have absolutely no place on the college campus. Our first responsibility is

[01:23:27] to keep these young people safe. And so I'd ask you to pass the bill. The question is, shall Senate Bill 272 pass? All in favor of that motion? We'll record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19, Senate Bill 272 passes. Senate Bill 276, a

[01:24:03] bill relating to state correctional facilities, visitation policies, annual report. The chair recognizes the senator from Norfolk. Thank you, Madam Madam President, I rise for a motion. - Senator has the floor. - Thank you, Madam President.

[01:24:19] I move that the bill pass and speaking to that motion. - Senator has the floor. - SB 276 is a family centered rehabilitation and public safety measure grounded in evidence and balance. Decades of research show that meaningful in-person visitation is one of the strongest predictors of successful rehabilitation, improved institutional behavior and reduced recidivism. Strong family connections support successful re-entry and successful re-entry makes our communities safer. Following the COVID-19

[01:24:56] pandemic, in-person visitation within our correctional facilities declined dramatically, not due to security necessity, but as a result of prolonged administrative restrictions. those policies have had real consequences for families particularly children and have weakened a proven tool for rehabilitation the bill before the body reflects a thoughtful and measured approach rather than mandating specific visitation requirements it directs the department

[01:25:30] of corrections to convene a diverse work group to identify policies that ensure meaningful opportunities for an in-person visitation while fully accounting for safety and security considerations. SB 276 also emphasizes transparency by requiring tracking of visitation availability, duration, and the reasons visits are curtailed or denied with a report due to the Governor

[01:26:05] and General Assembly by November 1, 2026. SB 276 does not compromise safety or limit the DOC's authority. It seeks data, best practices, and accountability to restore balance and evidence-based prop policy. Madam President, I would also like to take the opportunity to commend the DOC on the policies they have already implemented to increase in-person visitation throughout their

[01:26:38] facilities as we work to identify and implement best practices through this bill, proving that we can walk and chew gum simultaneously. Madam President, I renew my motion that the bill pass. The question is, shall Senate Bill 276 pass? All in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 40 no zero eyes 40 no zero senate

[01:27:15] bill 276 passes senate bill 322 a bill relating to the presidential electors and the agreement among the states to elect the president by national popular vote compact the chair recognizes the senator from alexandria thank you madam president uh i move the bill passed and speaking to that motion senator has the floor for those not familiar with the national popular vote interstate compact it guarantees that the presidency is won by the candidate who receives the most popular votes in all 50 states in the district of columbia senate bill 322 would add

[01:27:53] virginia to the 17 other states and the district of columbia that have ratified the compact there are three main shortcomings of the current system of electing the president. First, I should say, because of the state-level winner-take-all laws in most states, five of our 47 presidents have entered office without winning the most popular votes.

[01:28:13] And this is not a one-party problem. If we go back to 2000, we see Al Gore won the popular vote, but lost because of a close vote in florida but if you go flesh for and then george bush was elected president without the cut full popular vote but then four years later in ohio senator john kerry almost won ohio and would have won the electoral college if he'd gotten uh i don't know how many thousand more votes but if bush um if he had won ohio then he would have been the president

[01:28:51] without the popular votes and it would have disadvantaged a republican so we know that every vote is not equal through the united states throughout the country and voting for president presidential candidates concentrate their campaigns on winning closely divided battleground states and in 2024 the general election really occurred in only seven states that were closely divided and that did not include virginia so the other 43 states 80 percent of u.s voters including virginia or on the sidelines. The fact that 43 states are ignored in presidential campaigns affects governance as well as campaigns. Does anyone believe, hypothetically speaking, of course,

[01:29:29] that a president might mistreat federal workers if Virginia, Maryland, and DC mattered in presidential elections? We know from political scientists that voter participation is 11% higher in closely divided battleground states than elsewhere. So the national popular vote would eliminate those three shortcomings from the current system the winner take all system was never is not in the US Constitution never debated by the Constitutional Convention not in the Federalist Papers it was only used by three states in the first presidential election 1789 and all three of them

[01:30:04] abandoned it by 1800 the Constitution simply states quote each state may appoint in such manner as the legislature thereof may direct a number electors. So the compact uses the power of state legislators to choose the manner of awarding electoral votes. The compact only takes effect when enacted by states with the majority of the electoral votes. That's 270. At that point the states that approve the compact will require that all states electoral votes be awarded to the candidate who won the most votes nationally in the popular

[01:30:37] vote. With that I should mention that the jurisdictions that have enacted the compact thus far a compass encompass 209 of 270 electoral votes to activate the law so we're 61 votes short and uh after today's vote and hopefully passage in the house and a signature will be even closer pew research has been pulling on this issue since 2001 63 nationally favor electing the president by national popular vote again i renew my motion that the bill pass the chair recognizes

[01:31:13] the senator from Rockingham president I would ask if the senator from Alexandria would rise for a question well the senator yield yes I yield senator from Rockingham got a question that quite frankly would never have occurred to me to ask before the past few months but thinking about the fact that President Trump won the national popular vote and Virginia's electoral

[01:31:53] votes would have been cast for President Trump, it occurs to me that in the future the majority in this body might not like the outcome of the national popular vote and given the fact that there is a 29-day period between Election day and the date upon which the electoral votes are cast am i correct that it would be possible for the general assembly to be called back into session for a special session on the wednesday

[01:32:32] after election day for the purpose of adopting legislation to repeal this national popular vote bill madam president senator from alexandria no that would not be possible after we enter the the compact, federal law and the compact itself prevented.

[01:32:54] Senator from Rockingham. Madam President, I thank the Senator, and I would respectfully, speaking to the bill. Senator has the floor. Submit that while I have great confidence in my friend, the Senator from Alexandria's reading of the law, I do not have great confidence in our inability to come back in the future to wrought bring about mischief of the type that we have brought about over the course of the past couple of days because we don't like what's going on in washington dc

[01:33:34] and i respectfully submit that these high-minded notions like bipartisan uh redistricting commissions they sure sound good until we don't like the outcome uh that they produce and i submit that this is probably one more of those things that somebody is not gonna like the outcome and we're gonna be back here trying to undo it once again so I would respectfully submit that Virginia ought to be proud of the fact that we have

[01:34:08] electoral votes to cast in accordance with the will of Virginians I didn't like the will of Virginians in 2024 but by gosh I think that I trust our founders and I trust the drafters of the Constitution of the United States of America, and I think that the Electoral College serves a very important purpose, and I think Virginia ought to have a role in the outcome of national elections. I think this surrenders it, and we would be imprudent in doing so.

[01:34:40] The chair recognizes the senator from Roanoke. Speaking briefly to the bill, Madam President. Senator has the floor. Thank you, Madam President. Some of the districts near northern Virginia

sometimes have a lot of national figures living in their districts I think the vice president was recently one of your constituents perhaps even the patron of this bill But Roanoke Valley With our smaller population and our distance from the capital. We're not likely going to have that many figures come through except every president and

[01:35:19] candidate for vice president, with the exception of Vice President Harris, has come through Roanoke in recent years. We had President Obama, who was then Senator Obama, come through. We had Donald Trump, when he was a private citizen, seeking the presidency come through.

[01:35:34] We had Senator Biden come through. We had former Vice President Biden come through. Governor Palin, they all came through the Roanoke Valley because of the Electoral College. very hard to think that a population center with only about a quarter million people is likely going to get these major presidential candidates coming through and speaking to the issues that are important to us.

[01:35:58] That's why the Electoral College was devised not to be a national vote, it is to make sure that the interests across the jurisdictions of the union are all heard. And I think that it was not great a few years ago when the then Democratic majority in Congress wanted to nationalize elections. I don't think it's great that the current president's talking about nationalizing elections. If we go to a national popular vote, you're going to see a whole lot of discussion about nationalizing elections become much more intense, and instead of just waiting for a state like Florida, we're gonna get to wait for all 50 states, and not just have fights in one

[01:36:36] place, but all across the 50 states post-election. And you know, Madam president. It was pretty surprising to me when we were here about ten days before the last election, before the gubernatorial election, and a lobbyist came up to me and said, "Well, I guess I'll see you next week." And I said, "Are you coming to Roanoke?" And they said, "No, you're gonna be coming back here for a special session next week." Nothing had been announced. We then found out we were gonna have a special session to start a redistricting process for the constitutional amendments right then and there because it was believed that the polling was so good that the current majority would be able to get away with

[01:37:15] it. I submit it wasn't that much fun being here the week before the election. It won't be that much fun being here two weeks after the election if Virginia votes one way and the Electoral College looks like it's gonna go the other just like the senator from Rockingham said. I do not think that this is a something that will stand. I have very hard time believing that folks will allow Virginia's electoral votes to go contrary to Virginia's wishes if it will send the election the other way. This seems like this is basically a placeholder for one side. If you currently have this the General Assembly

[01:37:53] majority you'll be able to dictate this and it's we're seeing it play out right now in redistricting and I really hope we don't see it play out with the presidential. Thank You Madam President. The chair recognizes the Senator from Lynchburg. Thank You Madam President. Rising to speak to the bill. Senator has so far thank you madam president and we've seen this uh national vote for a while it's come up and 2026 the year 250 250 years of this great country our founders got some things right and i believe the electoral college was one of those things that they got right

[01:38:31] so that every state every state in the union had a say so in what was going on in the presidential election and every state controls how it conducts its elections i think that's very very important and as the senator from rock and ham said do we really want to turn our electoral votes over to other states and i

know it sounded good to some folks when we consistently lost the popular vote this time we did not lose the popular vote and for me personally i don't want to see this come down

[01:39:10] to Los Angeles or New York City or Philadelphia for the popular vote but for you folks on the other side of the aisle you look at what's going on right now and based on a lot of legislation a lot of things I see on social media you folks are not pleased at all with what's going on in Washington DC and what the president is doing and what some of his folks are doing so I would point to Florida you have governor Ron DeSantis in Miami and they talk about going into Miami and doing things to check who votes and when they vote and how they

[01:39:47] vote or Texas Harris County Houston the largest Democratic voting territory in Texas they've talked about taking over Harris County election process because the governor and the president say there's fraud going on there and that we need to send in state or federal people Republicans in to see how that county conducts its votes and some of y'all might have noticed just recently the DOJ just issued subpoenas in Fulton County the highest Democratic voting place in

[01:40:21] Georgia so this is bad for both sides if we do this you're turning it over to the federal government to go into various locations to various localities and count the votes how they want and they can already conduct the vote the elections how they want but do you really want to give up our sovereignty Virginia's sovereignty to every other state and how they choose to let people vote, not let people vote, count the votes, or not count the votes.

[01:40:54] Or I mean, we had in 2020, they tried to discount states' votes, alleging fraud. That's what we open ourselves up to if we turn this over to a national popular vote. It's a very bad idea.

[01:41:11] The chair recognizes the senator from Eastern Fairfax. Thank you, Madam President. Speaking to the bill. Senator has the floor.

[01:41:18] Thank you, Madam President. A couple of things that's been said. I think we need to make sure the record's clear about in this floor debate about this. First of all, the Electoral College now has resulted in five different presidents being elected who did not win the popular vote. I think most Americans and most Virginians think they live in a democracy. But when it comes to the president, they actually don't. They live in a plutocracy because the founders chose to put this Electoral College system in between the voters and the election of the president.

[01:41:51] And I want to remind everybody partly what motivated that at the time. Not only was it a distrust of voters, not only was it a distrust of the masses. And by the way, I would just note that at the time the Electoral College got put in place, most of the people sitting in this chamber probably wouldn't even be able to vote because if you weren't male and you didn't own 25 acres, you didn't have a vote when this thing got invented, number one.

[01:42:20] Number two, I just want to remind everybody that the other reason this got put in our Constitution was because at the time the Constitution was written about a third of the people who lived in the South weren't considered humans and at the time when they wrote the Constitution they put language in the Constitution that said that African Americans only counted as three-fifths of a person eight out of the 40 people in this room right now sit on this floor because of that language it actually augmented the size of the congressional delegation of the

[01:42:57] South by about 42 percent the only reason they agreed to the Constitution including this state, by the way, is because of that language in the Constitution. And guess what that translated to when it comes to president? It translated into presidential power. The origins of the Electoral College, my friends, was to basically augment the power of the South because of slaves, in addition to making sure the people didn't have a vote.

[01:43:25] That was the origin of this system. Today, we'll just remind the body that five of the six states whose population is 25% more black vote reliably Republican and so you know what those votes don't get counted either and also just note that because of this system three-fourths of America doesn't ever see a presidential candidate in their state because there's absolutely zero incentive to so matter president I would just say to the body the electoral college is not something we should also be lauding and

[01:44:03] patting ourselves the back and saying what a wonderful thing it is it has arrogant aristocratic and racist origins and its consequences continue to play itself out today and this is an attempt to try to mitigate the effects of that because amending the Constitution in this regard is probably pretty much impossible. I would hope we'd pass this. The chair recognizes the senator from Baudetat. Thank you, Madam President, speaking to the bill. Senator has the floor. Uh, Madam President, I listened very carefully to the words from my colleague the senator from Eastern Fairfax and I am dumbfounded by what I

[01:44:42] heard because there were historical inaccuracies there. I think if you go back and I don't have the time to go back and look at the notes for the Constitutional Convention originally if it were there but I would remind the body that there were two things that happened in that first of all was the structure of our legislature in Washington and there was a lot of argument about representation from the various states the compromise was was struck to be able to balance both the population irrespective of what the makeup of that was you can argue about that all day long and try to justify it one way or

[01:45:19] another but that the point is there were some states that were more populous than others those got more congressional votes but then we they came to the compromise that every state irrespective of size would have two senators in a house that would have equal footing much like this body does as the Senate of Virginia so that you don't have what was referred to then as the tyranny of the majority. Every state would be able to have the people of it of that state

[01:45:53] sovereign states would be represented appropriately and reflective of that very form is how the Electoral College came about. None of the reasons that were just cited were actually the cause or the thoughts behind the formation of the Electoral College. It was to make certain that each individual state could not be rolled over by the more populous states. Everybody's interests had to be heard.

[01:46:24] Everybody's interests had to be heard. If we pass this, if this were to become the law, I've heard it said that we have to do what we're doing for redistricting to balance the scales because of what other states have done to Virginia. Now I can argue against that in a variety of ways because I will tell you that we have exactly the same number of representatives going to Washington. Today, we will have, after we do, if the redistricting vote goes to the voters and they approve that, we will have exactly the same number of representatives there. So we're not getting more or less representation than we already have in this

[01:47:03] case. I've always discounted that argument. But you do this, you will have ceded the will of Virginians to the more populated areas, campaigns will be conducted in Los Angeles, and in Houston, and in Dallas, and in Miami, and in Washington, D.C.

[01:47:23] As my colleague Senator from Roanoke said, they won't be coming to Roanoke, they won't be going down to Bristol, they won't be going out to Ohio, they won't be going out to Minnesota, they won't be going out to the regions of Wisconsin.

[01:47:39] People in Wyoming will never see a presidential candidate. That's what would happen. votes would be wiped away. Our votes would be wiped away. Virginians will not be represented anymore. This is a disastrously bad policy. I urge you to vote against it. Thank you, Madam President. The chair recognizes the Senator from Western Henrico. Thank you, Madam President. Rise to speak to the bill.

[01:48:04] Senator has the floor. Thank you, Madam President. Madam President, members of the body, I guess I'll say a couple things. One is like multiple things can be true at the same time when you go back and you look at why the Electoral College was created the founders didn't want the legislature to pick the president like the prime minister system and that we haven't across much of Europe they were afraid about public knowledge of candidates but slavery was definitely a big one if you go back and look at the notes James Madison first

[01:48:41] proposed the citizens electing the president and that was unacceptable to the south because they knew they would always lose an election if the election was polarized along north the south lines which did not happen until after the 1850s and indeed when the 1850s came the Electoral College didn't matter because the north did have a bigger population that's how we got Abraham Lincoln and that's why southern states seceded but to kind of drive home the point of how in some ways it doesn't even matter why the original Electoral College was created if you go through the history of the Electoral College

[01:49:17] Everybody read Alexander Kisar's book, "Why Do We Still Have the Electoral College?" It is the single-handedly, it is the part of the Constitution that people have tried to amend the most throughout the history of our country, for good reason, for the reason that we're sitting here talking about it today.

[01:49:32] If you go and look at why it failed each time, including the last time where we almost got rid of it, which was the early 1970s when a senator from Indiana, Birch Bayh, carried the amendment to get rid of it, and you know who stopped it?

[01:49:48] solid South, the Jim Crow South, because they did not want to give up their veto point on the presidency, because the veto point on the presidency was one way for them to keep Jim Crow in place. It was one way to ensure that their system can maintain. That's a fact. You can go read the history. You cannot like what I'm saying. You can get upset about it. It's true. So it is a very big part of why we still have the Electoral College, but I'm hearing my friends on the other side of the aisle talk about how they care about how elections are at the state are run and how we're going to have all these bad things happen when whose fault is it that we have all these bad

[01:50:25] things happening in states? It is the current president of the United States who constantly is trying to get himself involved in state elections. I mean it would be great if somebody would stand up and try to stop him other than our side of the aisle. I find that point just just incredibly rich that we're sitting here talking about Georgia and Harris County and Philadelphia, wherever else we're talking about, when we all know who it is to blame. One person and a party that won't tell

[01:50:56] them no. I just find that stunning. But the last point I'll make, because I don't want to talk about this very long, I want to vote and keep moving, is that I would argue that one of the biggest problems we have in this country today is a lack of democracy. We can't get things done.

[01:51:16] We got so many darn choke points along the way, whether it's the filibuster, whether it's the two senators per each state, whether it's gerrymandering, whether it's whatever it is. And the Electoral College is a big piece of that. If the people speak, they should be heard.

[01:51:33] They should elect a president, okay? And I would hope we would vote for this. The chair recognizes the senator from Hampton. Thank you, Madam President. Speaking to the bill.

[01:51:48] Senator has the floor. Thank you, Madam President. I'm not going to reiterate the things that have already been said by the senator from Eastern Fairfax and the senator from Western Enrico. They are spot on. I think that I'm the only person on this floor who has a doctorate in political science and probably the only one who's taught American government for 40 years.

[01:52:12] But I would commend to my colleagues that if they continue to laud the virtues of the Electoral College, Read the Federalist No. 10 by James Madison that clearly outlines the whole issue with why this was all initiated in the first place.

[01:52:37] And that's already been outlined. United States senators, as initially envisioned, were not elected by the people. Because I'm sorry, my colleagues, our founding fathers did not trust the people.

[01:52:55] United States senators were elected by state legislators. they were not elected by the people until the 17th amendment was added to the Constitution this lack of trust in the people was why the Electoral College was founded in the first place because you didn't trust people to elect the president of the United States in the first place so most presidential candidates don't go to most of the states in the first place because they don't have enough electoral votes for them to go to those states ask them why they don't go to North Dakota you know or South Dakota or Rhode Island or why

[01:53:35] they're not going to those states why because they don't have enough electoral votes they're going to those states that are the most populous states because those are the states with the most most numerous electoral votes that's where they're going so don't assume that this electoral college is to be all and end all of electing the president of the United States it is not so I would commend all of you to read the federalist number 10s because James

[01:54:08] Madison will tell you in no uncertain terms why we are where we are today and I would ask that you support Senate bill 322 the chair recognizes the senator from Alexandria thank you madam president no one else wishes to speak senator has the floor well first I'd like to respond to the senator from Rockingham and remind him that the electoral count reform act of 2022 specifies that federal law in federal law that whatever law is in place prior to election day

[01:54:46] will control the election so you can't just change after the voters who cast their ballots the compact also has a six-month blackout period and thus any attempt to enter into or pull out of the compact between July 20th and January 20th inauguration day would be delayed until January 21st the following year and I think on the other side of the aisle we're hearing some Trump election paranoia syndrome is what I would diagnose and we need to remember for the senator from Roanoke that Roanoke matters because there's North

[01:55:23] Carolina media markets too and in fact I want to correct the senator from Eastern Fairfax on one small point he said that I think it was the three-quarters of the election took place in the battleground states was actually oh well it was 94 percent a much higher percentage of the 2024 election took place in seven battleground states you know we're we have a principle in this country of one man one vote that i

thought we had that the electoral college kind of deviates from today battleground states are often decided by tiny margins so we're used to post-election challenges the national margin on the other

[01:55:59] hand averages over four million votes and over the last 30 years much safer and as an example of big cities, dominating states, and so forth. Philadelphia, as an example, doesn't even control Pennsylvania. Trump lost Philadelphia and Pittsburgh both, 50 percent of Pennsylvania's population, but won Pennsylvania because of rural votes and carried the state. And similarly, in California, the fact that Democratic leading Los Angeles, San Francisco, San Jose, and Sacramento don't control the outcome of state elections is evidenced by Republicans like Arnold Schwarzenegger winning the governorship without winning those

[01:56:35] cities. You know I believe that every vote should count and every vote is equal and that's what this is about and in passing this bill we're going to do what Jefferson I think would have advocated for. Jefferson said I'm not an advocate for frequent changes and laws and constitutions but laws and institutions must go hand-in-hand with the progress of the human mind. As that becomes more developed more enlightened with a change of circumstances, institutions must advance also to keep pace with the times. So since the Constitution was written, we've gotten rid of slavery, we've let women vote, we've let people 18

[01:57:14] over vote, let's keep pace with the times and do what Jefferson would have wanted by passing this bill. Thank you. The question is, shall Senate Bill 322 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the roll as 21 nose 19 eyes 21 nose 19

[01:57:48] Senate bill 322 passes Senate bill 323 a bill relating to manufacture importation sale transfer or possession of plastic firearms and unfinished frames or receivers and un-serialized firearms prohibited penalties the chair recognizes the senator from Alexandria thank you madam president move the bill pass and speaking to that motion senator has the floor okay I consider this bill to be fixing a loophole right now manufacturers are required to put a serial number on finished firearms but not on individual parts so this bill does

[01:58:25] not capture currently put together guns it just requires that manufacturers dealers, distributors of the undetectable parts put a serial number on them moving forward. We know that these guns, these ghost guns, are often found at crime scenes, and we know that unfinished frames or receivers, the parts that are used to build a ghost gun, do not meet the ATF definition of a firearm and thus evade existing law and regulation. Perhaps most importantly, these guns are marketed. They are sold on purpose to people who wouldn't pass a background check.

[01:59:00] it's easier to build a ghost gun than to assemble an ikea dresser and the process of converting these parts we can which can be purchased without a background check license or record of sale even into a ghost gun involves just a few steps and can be completed without any specialized skill the serial numbers are key to firearm tracing and law enforcement investigations this bill does not stop anyone from building a gun at home scratch build hobbyists and craftsmen who make historical guns from scratch won't be affected but by regulating the component parts that are sold we can ensure these guns are not falling into the hands of people who are domestic

[01:59:39] abusers children and others prohibited from purchasing a gun move the bill pass the question is shall senate bill 323 pass all in favor of that motion will record their votes aye those opposed no are the

senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21, Nos 19. Ayes 21, Nos 19. Senate Bill 323 passes. Senate Bill 340, a bill relating to small renewable energy projects, agrivoltaics

[02:00:19] definition advisory panel. The chair recognizes the senior senator from Loudon. Thank you, Madam President. Madam President, I move the bill pass in speaking to that motion. Speak. Senator has the floor. Thank you, Madam President. Madam President, this is a bill that provides a definition in the code for the term agrivoltaics. This bill is supported by the Spanberger Administration, the Farm Bureau, the Chesapeake Bay Foundation, the League of Conservation Voters, and the Piedmont Environmental Council, among others. Agriculture is Virginia's number one economic sector, and this bill provides an opportunity for our farmers to meaningfully participate in supporting their farms,

[02:00:55] the agricultural economy, and energy demands with clean energy. This language is about keeping land in farming while energy is produced, not choosing one over the other. This bill creates a clear definition of agrivoltaics, meaning solar and agriculture are intentionally designed to work together on the same land. It's an agriculture-first standard, so projects can't just claim their quote, dual use on paper while farming effectively disappears. Madam President, this bill has been worked on by a group of stakeholders to make sure that farmers can continue to farm while also protecting the environment, and I'd ask the Senate to support the bill. The question is, - Shall Senate Bill 340 pass?

[02:01:34] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:01:49] - Ayes 25, noes 15. - Ayes 25, noes 15. Senate Bill 340 passes. - Senate Bill 344. A bill relating to Department of Wildlife Resources, premature separation and hybridization mammalian wildlife prohibited exceptions. The chair recognizes the senator from Northern Fairfax. Thank you Madam President. I move the bill pass and speaking to the bill. Senator has the floor. Thank you Madam President. This is a bipartisanly supported piece of legislation that has a very narrow focus that says we are going to protect our captive mammalian wildlife mothers

[02:02:27] and babies from premature separation. SB 344 makes it unlawful to prematurely separate any exotic mammal who is a wildlife born in captivity from the mother before they turn four months old. It also makes it unlawful to intentionally and for commercial purpose to propagate that mammalian wildlife of different species known as hybridization. Let me just be clear about what it doesn't do. It does not outlaw what we call nature. Animals in the wild choosing to mate this is an it eliminates an intentional hybridization for the

[02:03:05] sole perfect of selling those animals for profit it does not prohibit anyone from administering aid during an emergency situation it does not prevent bottle feeding for cow or calves it doesn't have anything to do with any agricultural animal or bird or it only focuses on animals that are in non non-accredited zoos and we know that there have been some horrible atrocities around this. This is an important bill that will help increase the

[02:03:39] safety of these animals from being exploited and I move the bill pass. The question is shall Senate bill 344 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk

will close the roll. Ayes 26, noes 14. Ayes 26, noes 14. Senate Bill 344 passes. Senate Bill 348, a bill relating to storage of

[02:04:15] firearms in a residence where a minor or person prohibited from possessing a firearm is present. Penalty. Senator from Northern Fairfax. Thank you, Madam President. I move to pass the bill and speaking to it briefly. Senator has the floor. Thank you, Madam President. We've heard this bill a number of times. It has passed at least twice and I'm bringing it forward again because this will help keep children safe from gun violence in their homes. We know that gun violence is the number one cause of death for children in America and in Virginia. This will simply require that if

[02:04:52] you do not have your gun on your person and you know that there are children or prohibited people who could have access to it, you lock your gun up. This is a proven and thoughtful, pragmatic way to help save lives. The first time I carried this bill, while we were debating this conversation in the chamber, there was a report that a six-year-old had gone in, taken his gun from home and gone in and shot up his school. Since that has happened, there have been a number of children who have either grabbed, picked up their gun at home and either killed themselves or killed a

[02:05:30] sibling or a friend. This just happened a few weeks ago, from what I understand. We can help solve this problem by passing this bill, and I move that we pass the bill. The chair recognizes the senator from Rockingham. President Russ, speak to the bill. Senator has the floor. Madam President we certainly disagree about the necessity of this bill I think that there are there is a diversity of views about whether we ought to be telling families precisely how they ought to handle firearms in their homes but I

[02:06:09] don't want to get into that I don't think it's necessary I can count I I understand the dynamics of 2119. But I do want to point out one thing that troubles me about this and, frankly, should trouble everybody on both sides about this, and quite frankly, it's an easy thing to fix.

[02:06:32] But the hardcore anti-gun activists have demanded the kind of orthodoxy that just is nonsensical and is reflected in this well-intentioned bill, it requires a safe with a biometric combination.

[02:06:56] It does not account for combination safes. It does not account for key safes. And we, a couple of years ago, we've been looking for ways that we can work together on gun safety and gun safety in our homes.

[02:07:13] and a couple of years ago we came up with one good idea my friend from down the hall the delegate from arlington i believe delegate lopez introduced legislation that gave virginians a 300 a person tax credit for the purchase of gun safes for precisely the reasons that this statute It is presumably introduced.

[02:07:43] We give away up to, or we've authorized, giving away up to $5 million a year to Virginians in tax credits to buy gun safes, and I think that's a good thing. You know, I bought them as Christmas presents. Thank you very much, Commonwealth of Virginia, for that gift.

[02:08:01] But what this does is it says that those gun safes, many of which are combinations, many of which are very effective in protecting children from access to firearms, you know, it doesn't matter.

[02:08:18] That $300 that we've given to people, it doesn't satisfy the requirements of this bill. And that does not make sense. This is drafted to the highest common denominator, those who have the most extreme views with with respect to gun control and disregards and basic principles of common sense.

[02:08:47] We ought to make this consistent with, at least consistent with the policy statement that we've made and the millions of dollars that we have invested in equipping homes across the Commonwealth of Virginia with very effective gun safes.

[02:09:04] This does not do that. The chair recognizes the senator from Prince Edward. Thank you, Madam President. can break through the bill. Senator has the floor. Madam President, the way I understand this, anyone under the age of 18, if they're in the home, the firearm would have to be stored in such a way that they would be unable to use the firearm, if I'm understanding that correct. Madam President, the Second Amendment exists for a lot of reasons, one of which is home defense. I know I was personally, as a 15, 16-year-old, trained to use a firearm,

[02:09:43] probably better than a lot of adults have. So I have a problem with, for example, if a 17 year old is at home alone and there's an intruder, they don't have the ability to defend themselves. And Madam President, I also have a problem with, as a father who's raised three daughters, of saying that because I have people in my home that need to be protected, that I would not have a firearm that was ready to use without an extra additional process to go through the event that I actually had to defend them. So I think I understand the intent of this. To me, this is an overreach of the government thinking that on remote control, we can manage people's

[02:10:22] lives better than they can manage them themselves. I'll be voted against this bill for a number of reasons and hope others will join me. Thank you. The chair recognizes the senior senator from Fairfax. Thank you, Madam President, speaking to the bill. Senator has the floor. Thank you, Madam President. For 56 years, I've been involved in the juvenile justice system.

[02:10:43] in the commonwealth of virginia 17 of which running the juvenile detention center in fairfax and i can remember on four occasions and fairfax very safe county very very little gun violence having a conversation with the dad who's come to see their son in detention and the first thing they said was but he's never touched that gun before i said well sir i think you needed to keep it out of his reach and in some place where he couldn't get to it because what i learned in those 56 years is that our lives change they're not always the same is that we buy that gun we're

[02:11:23] newly married we want to protect our our wife and our family we have a new child and what have you that gun goes up in the closet under a blanket or in the table next to the bed and nobody bothers it for years and years and years and then one day i can't believe that he touched that gun he's never touched it before because your lives change you're no longer the social drinker you were at age 25 you have alcohol problems when you're 45. Your lovely wife, your cherished wife going through postpartum depression, the gun never changes its nature. It just sits

[02:12:02] there and waits for us, waits for our lives to change. Most of the times that's safe, but many times it isn't. And we have to take responsibility for locking these weapons up. Here in the city of Richmond, there are 38 kids in juvenile detention about six weeks ago when I was there 82% 82% of them there were on gun charges they didn't buy them at the gun store they stole them from cars they stole them from houses they bought them off the street we've got to close slow down that supply of weapons into the hands of people who are not yet ready to exercise their Second Amendment rights so down in president I urge the body to

[02:12:42] support this bill is a common-sense measure to protect the lives of our loved ones. Thank you, Madam President. The chair recognizes. Does the senator wish to speak or speak last? Senator wishes to

speak. Senator from Northern Fairfax. Thank you. This bill has passed numerous times in this in this chamber and through the House. I would just like to remind the body, the first time I carried this bill, it was only to allow for guns to be stored in a locked box and ammunition to be stored in another. As a concession, we determined that using a

[02:13:16] biometric safe that you can buy online just go ahead and do a search for fifty dollars or so would be a reasonable accommodation that's the posture that the bill is in right now but I understand that the senator from Eastern Fairfax would like to take it by for the day and I will make that request without objection Senate bill 348 goes by for the day Senate bill 352 a bill relating to law enforcement officers restrictions on wearing a facial

[02:13:54] coverings exceptions civil liability penalty senator from central Fairfax thank you madam president I move that the bill passed and speaking to that motion senator has the floor thank you madam president this bill is part of our community trust agenda to provide safety to our immigrant communities Wearing the uniform of Virginia law enforcement carries a duty to serve and protect the public and those who do so honorably are respected as pillars of our communities.

[02:14:22] In return, the public expects professionalism from the uniformed officers who they pay with their tax dollars. As one of my constituents wrote after witnessing what they described as "undue aggression and reckless disregard for bystander safety in a well-populated mixed-use area with businesses and apartments and what my constituents was referring to is that law enforcement covering up their faces and committing sort of act of what they like to call it is enforcing the law but in that case they were not ice the ice

[02:14:59] officers who have killed Renee good and Alex pretty were masked and Minnesota authorities are struggling to investigate those shooting i have been here since i was 10 years old and i have been always taught if somebody is going to be coming out there with with a mask on their face picking people up from the street taking them away that is clearly called kidnapping this bill forbids law enforcement from wearing facial covering exceptions are provided for masks to address the spread of diseases, extreme cold, and undercover operations.

[02:15:36] Violations are classified as misdemeanor one unless the agency employing the officer has adopted its own policy following DCJS guidelines. Passing this bill will go a long way to restoring trust between our communities and the law enforcement agencies who serve us.

[02:15:55] Madam President, with that, I ask that this bill pass. The chair recognizes the senator from Colonial Heights. Thank you, Madam President, speaking to the bill. Senator has the floor. Madam President, the issue with this bill is that it makes a very broad, one size fits all criminal rule about what a law enforcement officer can wear on their face while doing their job.

[02:16:18] It turns a real world safety decision into a class one misdemeanor for cops. Now, there are plenty of situations where an officer may need face protection or identity protection that's not covered cleanly by this bill under an exception.

[02:16:36] Think about crowd control when officers are being targeted, they're being filmed, they're being doxxed and threatened. Think about a court security situation where a violent defendant's associates are present or serving a high-risk warrant involving gangs or organized crime.

[02:16:54] Not every dangerous assignment for our police officers is necessarily going to be a SWAT team situation, which I understand is one of the exceptions, and not every identity protection is going to fit under the narrow undercover exception.

[02:17:10] And so what this bill is telling our police officers in Virginia is that you have to show your face even when doing so puts you and your family at risk. And we know the context of this bill. It's 2026. We all know what happens. The names of these police officers get posted, photos get blasted online, the officers get followed home, spouses get harassed, kids get threatened.

[02:17:35] And so this bill does not just set a policy, it makes it a class one criminal misdemeanor for these officers protecting themselves in the line of duty. And so an officer is going to have to choose between protecting him or herself or risk being treated like a criminal if this is signed into law.

[02:17:56] Now, if we want accountability, we have accountability. We have tools, badges, body cams, discipline, but we shouldn't be criminalizing officer safety decisions and making our officers criminals simply by trying to stay safe in a dangerous moment.

[02:18:14] Thank you, Madam President. Does the Senator wish to speak again? Yes, ma'am. Madam President, I want to make sure there's clarification on this bill. There is a whole section that has exemptions around undercover officers, around officers who are part of certain missions that require them to have facial covering and in that bill it's a long list of exceptions that we make to ensure that there's public safety to ensure that our law enforcement folks who are actually following the law are covered under this bill so with that I hope we pass this

[02:18:53] bill the question is shall Senate bill 352 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 nose 19 eyes 21 nose 19 Senate bill 352 passes Senate bill 384 a bill relating to Virginia information and technologies agency artificial intelligence independent verification organizations

[02:19:31] the chair recognizes the senator from norfolk thank you madam president madam president i rise for motion senator has the floor thank you madam president i move that the bill pass and speaking to that motion senator has the floor sb 384 is a measured forward-looking bill that addresses the rapid growth of artificial intelligence while ensuring the commonwealth proceeds thoughtfully responsibly and informed by evidence artificial intelligence better known as AI is increasingly used in ways that can affect public safety, consumer protection, and critical

[02:20:10] decision-making. While AI offers tremendous benefits, poorly designed or insufficiently tested systems can pose real risks. The bill before the body reflects a prudent next step, gathering the information necessary to determine whether and how an independent verification framework should be developed in Virginia. SB 384 directs the Joint Commission on Technology and Science to evaluate the feasibility, impact, and

[02:20:45] fiscal implications of establishing a framework for independent verification organizations that assess AI systems against best practices for preventing personal injury and property damage. This requires consideration of existing standards, risk metrics, practices in other states, and other licensing structure, and whether other licensing structures would be appropriate, including which state agency should administer it. Importantly, SB 384 does

[02:21:24] not regulate or restrict artificial intelligence, mandate verification, or interfere with innovation. It authorizes a study and recommends only ensuring decisions are data-driven and deliberate. In addition, it does not violate any executive order. SB 384 positions Virginia to lead responsibly in emerging technology policy. Madam President, I renew my motion that the bill pass. The question is, shall Senate Bill 384 pass? All in favor of that motion will record

[02:22:04] their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no zero. Ayes 40, no zero. Senate Bill 384 passes. Senate Bill 461, a Bill relating to Marine Resources Commission, commercial electrofishing licenses.

[02:22:29] The chair recognizes the senator from King George. Thank you, Madam President. I would move the bill pass in speaking to that. Senator has the floor. Madam President, this bill would prohibit electrofishing north of the Downing Bridge in Tappahannock, Virginia, on the Rappahannock River until January 1, 2027.

[02:22:51] during that interim vmrc will examine this practice and report findings to both the house and the senate agricultural committee and this is just commercial fishing it doesn't have to do with research or anything like that but the issue is vmrc issued some years ago three license for three individuals in the commonwealth to electro electro fish and they have been doing it around people's docks while children were swimming and dogs were in the water and it's created a bit of a stir so hopefully this will cure this while the mrc has time to react and

[02:23:31] give us some expert recommendations i'd ask the bill passed the question is shall senate bill 461 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 8. Ayes 32, noes 8. Senate Bill 461 passes. Senate Bill 489,

[02:24:05] a bill relating to financial institutions and services, virtual currency kiosk operators, license required penalties. Senator from Central Fairfax. Madam President, I move that the bill pass and speaking to that. Senator has the floor. Thank you, Madam President. This bill emerged from my work as the chair of JCOD's Blockchain Advisory Committee aims and aims to protect Virginians from the growing scam that's target that targets elderly immigrants and other vulnerable communities.

[02:24:37] Crypto kiosks are a booth that can be found at dollar stores, gas stations, and everywhere else that allows users to turn cash into any kind of cryptocurrency. Seniors in Virginia have been scammed by criminals who have taken advantage of the untraceable cryptocurrency market and have been tricking victims into converting their cash into cryptocurrency and then sending it to them.

[02:25:03] The scam usually involves, themselves are often familiar, a phone call from somebody pretending to be the victim's grandchild and needs funds to get them out of prison or to avoid being stranded while traveling overseas immigrants are often targeted by scammers claiming to be calling from the court that will soon rule against their immigration status unless fees are quickly paid in cases where victims learn they have been scammed and law enforcement get involved cryptocurrency is much more difficult to recover than traditional currency that's why it's important

[02:25:38] we codify these consumer protections where uh we ensure that there's screen disclosure and warning signs limitations for new users daily and monthly transfer caps vendor fee refunds in case of

fraud and of course there's a 48-hour hold for any new account these are details there are details in the bill about how the sec will monitor these kiosks and streamline vendor collect collaboration with law enforcement. The costs are minimal compared to the cost of inaction while they're being paid

[02:26:13] mostly by Virginia seniors. Last week, the Attorney General of Massachusetts filed a lawsuit against the vendor currently operating in Virginia that has lobbied against this bill. Their suit alleges vendor uses misleading and deceptive tactics to overcharge consumer, knowingly facilitating scams that rob consumers of millions of dollars, refusing to issue refunds to scam victims and deceive investors about the level of scam activity on their kiosk.

[02:26:45] Madam President, this bill really is a consumer protection bill to ensure that we update our regulatory compliance to tackle the growing concerns around cryptocurrency, and this is more of a protection not to ban any of the technology itself and the usage madam president with that i ask that we pass this bill does the senator from central fairfax wish to elaborate any further madam president now that i got another

[02:27:21] 20 minutes i ask that we pass this bill thank you senator for the comprehensive elaboration of your bill the question is shall senate bill 489 pass all in favor of that motion will record their vote aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes

[02:27:49] 40, noes 0. Ayes 40, ayes 40, noes 0. Senate bill 489 passes with rounding applause. Senate bill 553, a bill relating to certain data from water users, water use consumption of data centers.

[02:28:12] the chair recognizes the junior senator from loudon thank you madam president i move the bill pass and speaking to that motion senator has the floor madam president senate bill 553 is a transparency measure that requires any water supplier that provides water to a data center with the deq air permit to report the total volume supplied including reclaimed water monthly or quarterly if the monthly measurements are not available providing deq and the state Water Control Board with accurate data for responsible water planning and resource management.

[02:28:48] I hope it's the will of the body to adopt this bill. Thank you, Madam President. The question is, shall Senate Bill 553 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[02:29:06] Do any senators desire to change their vote? The clerk will close the roll. Ayes 25, noes 15. Ayes 25, noes 15. senate bill 553 passes senate bill 632 a bill relating to elections candidates and election officials address confidentiality the chair recognizes the senator from eastern henrico thank you so much madam president i move the bill pass and speaking to that most senator has the floor thank you madam president right now um judges law enforcement officials and even election

[02:29:42] officials have certain protections within the code given their heightened risk um to exposure given their duties. And this legislation, Madam President, allows everyone in this chamber to be privileged to some of those same protections. That includes eliminating the requirement that candidates' home address be publicly disclosed. It also allows candidates to instead utilize their voter identification number, which is associated with their address, to establish residency and eligibility for the office that they seek. And further, it automatically enrolls elected officials into the protected voter system allowing them to also use their PO

[02:30:21] box for the information that is publicly disclosed so madam president I'm hoping that we can again extend the protections that are already in the code from those other individuals to ourselves and candidates as well the question is shall Senate bill 632 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 21,

[02:30:54] noes 19. Ayes 21, noes 19. Senate Bill 632 passes. Senate Bill 636, a bill to direct to the Department of General Services to remove all Confederate monuments and memorials from Capitol Square. Senator from Alexandria. Thank you, Madam President. I move the bill pass and speaking to that motion.

[02:31:14] senator has the floor senate bill 636 calls for the removal of three statues from capitol square general uh confederate general thomas j stonewall jackson unveiled in 1875 uh extra billy smith unveiled in 1906 and dr hunter holmes maguire unveiled in 1904 in capitol square these men fought and did their best to preserve slavery we are not erasing history by removing their statues but rather making an important statement on who we choose to venerate as a commonwealth.

[02:31:47] Virginia is not short on people in our history who we should venerate with statues. I thank the senator from Roanoke, for example, for leading the effort to see that Booker T. Washington is appropriately commemorated in Capitol Square. There's an old saying in the Boy Scouts that you leave a campsite better than you found it, and for 22 years I've been here and sometimes I walk past those statues on my way to the civil rights monument or to the governor's mansion where we see the beautiful rendering of barbara johns and her fellow students and i'm embarrassed to see statues of stonewall

[02:32:23] jackson and some people who represent the worst in our history um i think this should be a bipartisan bill i'm sad it might not be but uh for those who say we're raising history what we're doing is is we're deciding who we want to honor on the Capitol lawn. And the statues wouldn't be necessarily destroyed or something. There's actually a process in the bill for the Department of General Services to store the facilities and we can make arrangements for other disposition. Just this morning I spoke

[02:33:01] with the Museum in Culpeper who expressed interest in one of the statues and said they'd put it into appropriate historical context rather than just put it on like the courthouse lawn or something. So these statues are not going to necessarily disappear, but we can bring schoolchildren by and show them the statues we're proud of, not explain that they're there because of a lost cause mythology where people wanted to honor those who were treasonous to the

[02:33:33] Union. So with that, I would move that we pass the bill. The question is, shall Senate Bill 636 pass? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. Senate Bill 636 passes.

[02:34:04] Senate Bill 727, a bill relating to carrying loaded firearms in public places prohibited in the Commonwealth. Penalty. The chair recognizes the senator from Richmond City. Yes, ma'am, Madam President. I move the bill pass. And speaking to that bill.

[02:34:21] Senator has the floor. Thank you, Madam President. SB 727, basically what it does, it makes it illegal for anyone to carry loaded assault firearms with certain features or magazine capacities in public places such as streets, parkways, sidewalks and other areas open to the public in Virginia. It specifically

targets semi-automatic rifles with characteristics like large capacity magazines, folding stocks, pistol grips or attachments such as silencers or grenade launchers. There are exemptions for law enforcement officers, military personnel and others that are taking place or taking part in

[02:34:59] official training or ceremonies with that madam president I move the bill pass the question is shell 7 Senate bill 727 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 noes 19 ayes 21 noes 19 Senate bill 727

[02:35:32] passes. Senate Bill 749, a bill relating to purchase, possession, sale, transfer, etc., of assault firearms and certain ammunition-feeding devices prohibited penalties. Senator from Central Fairfax. Thank you, Madam President. I move that the bill pass and speak to that motion. Senator has the floor. Thank you, Madam President. The bill before you, Senate Bill 749, is related to assault firearms and ammunition-feeding devices. We have seen the devastation that these weapons of war can conflict on our neighbors, our children,

[02:36:10] and our communities. We know that during the 10 years that the federal assault weapon ban was in effect, mass shooting fatalities were down, 70% were less likely to occur. In Virginia alone, the shares of crime equipped with high-capacity magazines jumped from 10% in 2004 to 22% just six years later we are just we are not just talking about guns we're actually talking about specific class of high velocity hardware designed to maximize human carnage this bill is precisely as it defines what assault

[02:36:48] firearms are it also puts in exemptions for those that are in law enforcement that may have an actual need to carry these under this measure the future sale, import, or transfer of these weapons would become a class one misdemeanor.

[02:37:08] We are drawing a line in the sand. These tools of mass destruction do not belong in the commerce of civil society. Madam President, let me be clear. If you lawfully own one today, you get to keep it. We are not here to retroactively punish law-abiding citizens.

[02:37:26] That includes assault weapons, that includes magazines that you currently own, but effective July 1st, 2026 and going forward anything with magazine size more than 15 cannot be owned or carried forward. However, the exemptions that are included are for families who can gift it to your, you know, immediate family members or if it's vital to the need for law enforcement and armed forces. Madam

[02:37:58] president uh for those of folks that do violate this there are consequences including again uh prison up to one year and of course they would lose their ability uh to purchase additional firearms for up to three years uh virginia is not alone in this fight 11 state and the district of columbia has already recognized these uh status quo uh that the status quo is untainable currently these high-velocity weapons are also prevalent. They are a dime and a dozen, making it tragically easy for criminals to outgun our communities. This bill isn't about seizing property. It's

[02:38:38] about stopping the flood. It's about gradually taking the most lethal weapon off our streets so that Virginia and mass shooting are never linked in a headline again. It is about delivering the peace of mind that every Virginian traumatized by our recent history rightfully deserves.

[02:38:55] We have a choice today to continue the cycle of thoughts and prayer or to take decisive, constitutional, and practical steps towards safety. Madam President, with that, I urge my colleagues to support Senate Bill 749 and pass this.

[02:39:11] The chair recognizes the senator from Orange. Thank you, Madam President. Will the senator from Central Fairfax rise for a question? Will the senator yield? I yield for a question. Senator from Orange. Madam President, I would ask the Senator from Central Fairfax to clarify on line 291 of the bill, maybe at the end of 290, not including an attached tubular device designed to accept and capable of operating only with .22 caliber rimfire ammunition, what that actually means.

[02:39:45] Senator from Central Fairfax. Madam President, we want to make sure if folks who have detachable firearms that could at some point put up to a certain caliber of magazines in there was also sort of prohibited, but at the same time, we want to make sure that was defined.

[02:40:06] Senator from Orange. Madam President, follow-up question. Senator from Central Fairfax, will you yield? I will yield. Senator has the floor. Madam President I would preface this with I still don't understand and I don't know that the senator from Central Fairfax understands what he just said.

[02:40:26] The second question I have for the senator is is he aware that most turkey shotguns that exist for hunting game have a lower hand grip pistol type grip to the back of the butt plate and was it his intention to ban turkey shotguns?

[02:40:48] Senator from Central Fairfax. Madam President, to answer the gentleman, again, if you currently have one, my intention is that you get to keep it. It is going forward in starting July 1st, 2026. Under this definition and under what's defined in this bill, if you were to purchase anything related to that, then those would be banned going forward.

[02:41:11] But, again, if you have it and if you, you know, purchased one before the enactment of this law, you would be able to keep it and use it at the pleasure of what you would like to do. Senator from Orange. I thank the gentleman from Central Fairfax.

[02:41:29] I also want to thank him on behalf of all the gun dealers over the last weekend who almost sold out of all their equipment. The chair recognizes the senator from Colonial Heights. Thank you, Madam President. Speaking briefly to the bill. Senator has the floor.

[02:41:44] Madam President, this bill makes it a crime for law-abiding Virginians to buy or transfer a huge, huge category of average, everyday, commonly owned firearms that the bill calls, quote-unquote, assault firearms.

[02:42:01] And it bans the purchase and transfer of very common, widely owned magazines over a certain capacity. And the definition is based on the features of these things, not on who is committing the crimes with them.

[02:42:17] It sweeps in firearms based on items like a threaded barrel, common grips and stocks, and standard configurations that many law-abiding Virginians own for home defense, for sports shooting, for hunting. The bill doesn't focus on those who are committing the violent crimes.

[02:42:34] it focuses on hardware, and it does so in a way that turns normal, peaceful conduct into a criminal offense. The people who are going to feel this are not the gang members, they're the ordinary citizens who are already following the rules, the folks who are passing the background checks, who are keeping the firearms for home defense and hunting and sports shooting. And so we're pushing law-abiding owners into a legal maze about what they can do with their property that they already own even temporary lending becomes risky because the exceptions are

[02:43:12] so narrow and meanwhile criminals are not and are never going to comply they already ignore the laws against possession by felons use and robberies trafficking and straw purchases and they're going to keep doing what they what they do steal guns traffic guns ignore the law this bill just creates a new way to prosecute people who were not and never were the problem and so if we want to stop violence let's target the violence but this bill targets ownership and creates new

[02:43:43] paperwork crimes and I'd hope it would be the will of the body to vote no on this bill. The question is shall Senate Bill 740 does the senator wish to speak? Would the senator yield for a question? I apologize I thought there were more in the queue. Does the senator yield for a question? I would deal for one question senator from King George thank you madam president I thank the senator I was trying to look through this but if I understand it correctly if

[02:44:22] you own what is defined in here as an assault weapon currently you may keep it I would ask the senator in order to document that does the bill contemplate that we will now have to register our firearms with some government senator from central Fairfax madam president and to answer the senator you do not have to register with the government in any way to indicate that you have purchased it or you have owned it currently president senator from King George and

[02:44:59] then I would ask the senator how do we how how do we not keep from getting arrested because it will now be a criminal offense to own these unless you register it with the police the state the county how do we protect ourselves to make sure that we don't get end up in prison for owning that weapon that's always been lawful to own senator from Central Fairfax madam president and to answer the gentleman's question I know there's a lot of folks who who like their

[02:45:34] guns if you purchased it and you have a receipt whatever means that you know on your own capacity you would be able to use that and if you're a law-abiding citizen I don't think you would be taking your guns and committing crimes where you're gonna get caught and you're gonna get in trouble for so again we are not you know doing any type of registration we're not we're simply saying if you have it do you get to keep it senator from King George gentlemen yield for another question senator will you yield for another question I yield for one question senator from King George and madam president I'm not

[02:46:10] trying to make this difficult I have a lot of constituents who own guns I represent 11 counties in Virginia it's a very big district and they're very concerned about this bill many of them have never even had a speeding ticket but they like to own guns and they like to shoot for fun at targets and such so where in the bill does it address how a citizen may protect themselves if they already own one of these weapons that is now being outlawed and could subject you

[02:46:45] to jail time. Senator from Central Fairfax. Madam President, we do not address in this bill on whether citizens could go ahead and register their current firearms under the this bill. Senator from King George. Speaking to the bill senator has the floor so so then madam president I take that to mean there is nothing in the bill that protects citizens who already own them the bill does not address it and that is of great concern to me and others who

[02:47:22] are law-abiding citizens and I understand that there are those that want to ban what they would call an assault style weapon and I get that but But that gun is being identified as an assault weapon by its outward characteristics, not its function.

[02:47:44] It's not an M16A2 like I fired in the Marine Corps. It's not an M1. It's not a gun that was actually designed for warfare. It's actually identifying and describing many firearms that people hunt with.

[02:48:04] And that concerns me a great deal. And I think if you're going to do this, the least that you could do is put protections in the bill so that people might know what they need to do so they don't end up in jail for having this in their home, which has always been legal.

[02:48:27] The chair recognizes the senator from Lynchburg. I'll see if the senator will yield for a question. Senator from Central Fairfax, do you yield? Yield for a question senator from Lynchburg. Thank you, madam president. I'm following up on the senator from King George And trying to go through this with the substitutes that is my question if this bill passes Goes into effect on July 1st and July 18th

[02:49:05] And then any citizen of the Commonwealth is out there with an assault rifle Can he be charged with possession of an assault rifle and then it will be incumbent upon him to provide the documentation of when he purchased that vehicle or he will have to provide some kind of proof after he's been charged that he owned the vehicle before Oh the weapon the firearm before July 1st That's what I'm trying to find and that sounds like what the senator from Crank King Richard was trying to find out

[02:49:42] Senator King Richard is found in Shakespeare, not on the Senate chamber.

[02:49:58] Senator from central Fairfax. How do we protect ourselves? Do you have to have some kind of, how do you prove it? Can they charge you first, which it sounds like they can. How do we avoid that under this bill?

[02:50:14] please please address all the questions through the chair senator from central fairfax thank you madam president thank you to the gentleman as well and you know i'll defer the question to one of my uh colleagues in a little bit but i do i do want to point out if i'm hearing from the other side they would like to introduce the bill next year to ensure that folks register their firearms is what i'm hearing from the other side um and and with what the question was being asked um at the current moment you know this bill does not address registration um along with that if an

[02:50:47] individual um you know i'm going to refer defer to um uh the senator from um eastern fairfax senator from eastern fairfax thank you madam president uh speaking to the answering the question senator has the floor you know in the united states of america in a criminal case in a criminal case the government has the burden to prove you're guilty you don't have the burden to prove you're innocent and in this context what the courts of this state have held is that the

[02:51:24] government also has the burden to disprove every hypothesis of your innocence before the government before you can be forced to put on any evidence to show your innocence and what this bill states is that you're allowed to possess one of these things as long as you bought it before july 1 of 2026 and so in order to charge somebody and i would submit in order to prosecute somebody there has to be some evidence that it was bought after july 1 of this year just having it in your possession does not mean the government can charge you because there's 300 000 of them that are out there that are legal so it's not that simple and if you all want to change the criminal system to

[02:52:02] put the burden of proof on the defendant which is not the way it's ever worked in this country i'd be surprised but it sounds to me like that's the position that some people want to take when when it comes to this bill because they're not happy about it but for what purpose does a senator from Lynchburg rise I see if the senator from Eastern Fairfax will yield for a question senator from Eastern Fairfax do you

yield oh you and that is senator has the floor thank you madam president that's the whole issue with the statute what under this statute as it exists today what is guiding our law enforcement as to whether or not to investigate or

[02:52:39] charge an individual who has they pull a vehicle over the guy has an assault rifle in the vehicle do they charge him right away what is in here to tell them when to charge not to charge what to base it on senator from Eastern Fairfax I'll yield matter president asked the gentleman look at lines 37 subsection C which has the criminal penalty where it says the provisions of this section shall not apply to any government officer agent or employee of the Armed Forces United States. Let's just start with that. So suppose you see somebody walking around

[02:53:15] in the United States Army uniform carrying an assault rifle, okay? Is it the other side's position that the police are going to see him with an assault rifle and say, well, you can't prove you're an Army officer. We're going to have to charge you and then find out in court later whether or not, you know, you're really in the Army or not. Of course not. That's not what's going to happen. The government has to look at all this and make sure that none of these things apply before anybody gets charged. It has to be probable cause to believe somebody bought the thing after July 1 of 2026 before anybody gets charged that's how criminal prosecutions work it's not just i see a guy with a gun i'm going to charge and we'll figure it out later that isn't how the system works that's a great way for the police

[02:53:50] officers to get sued madam president i would submit this read the statute read the exceptions the government has to believe that those exceptions don't exist before you can be charged the chair recognizes the senator from arlington thank you madam president madam president i stand to speak in support of the bill senator has the floor thank you madam president from the conversations before us I have gleaned and it's been reinforced by the senator from Eastern Fairfax we're not changing any of the criminal procedures or the

[02:54:28] laws that are you that are in place today in terms of our due process none of that's going away this bill is about public safety assault style weapons are are weapons of mass destruction we've had 700 deaths over the past year in the united states because of assault style weapons this is not a new concept banning these types of weapons we had a federal law on the books from 1994 to 2004 and there was a 70 percent reduction in mass shooting

[02:55:06] deaths when we had that federal statute unfortunately it was not reauthorized but But the need is obviously there. It is there in a very big way. And Virginians, I believe, want to feel safe.

[02:55:23] They want to be able to go about their daily business. They want to be able to go to grocery stores, send their children to school, go to a movie theater without the fear of somebody having a weapon of mass destruction and being caught up in a massive shootout.

[02:55:46] This is about public safety. The conversation is pretty amazing the way it's been sort of twisted and turned into something about hunting. It's really about that balance between individual rights and being able to provide an environment where all of us feel we can go about our business and we feel safe.

[02:56:09] I really urge passage of this bill. Thank you, Madam President. The chair recognizes the senator from Lynchburg. speak to the bill madam president senator has the floor I hope people will vote against this bill I have my doubts as to certain members but I will just point out I remember madam president back decade ago or so when we were changing the entire health system of the country and we

were promised if you like your health care you can keep it and today we're being promised if you like your assault rifle you can keep it but I have my doubts and just to answer one

[02:56:49] of those questions well if we pass this bill you know July 1st you can't buy a new assault rifle but you can keep the one that you had so if I take my assault rifle downtown to the Alexandria market that I own now are you gonna feel any safer than if I took one that I bought on July 2nd illegally and took it down This bill doesn't do anything about outlawing assault rifles.

[02:57:17] It doesn't make anyone any safer. We have assault rifles. We've been told that we'll be able to keep them. So I don't know why an assault rifle purchased before July 1st, 2026 makes anyone less safe or is more dangerous than an assault rifle purchased after July 1st, 2026.

[02:57:37] And more importantly, law enforcement is going to have zero idea of when that assault rifle was purchased, whether it was purchased before or after July 1st, 2026. And that is the problem. It's ambiguous. It is very difficult to enforce, and I'm afraid will lead to problems down the road.

[02:57:55] Thank you, Madam President. The chair recognizes the senator from Rockingham. Madam President, speaking of the bill, a couple of things real quick. Senator has the floor. First of all, I appreciate the Senator from Eastern Fairfax's discussion of criminal law and burdens of proof.

[02:58:16] We just passed a piece of legislation saying people who pose a danger to themselves or to others can go into hospitals with a firearm as long as they say, "Holy cow, I had no idea I had it."

[02:58:35] The same rule applies there. You got to be able to prove that they knowingly, intentionally violated the law. But it didn't matter when we were talking about that, because that was the bill dealing with banning guns. We feel better when we ban guns around here, apparently.

[02:58:52] And it doesn't matter what the real statistics are. The real statistics are, number one, it is laughable to suggest that these are weapons of mass destruction. Atom bombs are weapons of mass destruction.

[02:59:07] weapons are weapons of mass destruction these are rifles they are rifles that some people think looks scary and as a consequence we're out to develop window dressing to make it feel like make it look like to make people think that we are doing something good I appreciate the numbers that were were reported but But you know what, rifles, not just assault style rifles, but rifles account for 3 to

[02:59:40] 5% of firearms murders, 3 to 5%. This is something that is going to get on the news, something that's going to make people feel like those people in Richmond, they're really doing something, but what they're doing is turning law-abiding citizens into criminals.

[03:00:01] That's what they're doing. do you really think somebody out there with murder in their heart is gonna feel like I can't go get an assault style rifle because I might be convicted of a class 1 misdemeanor give me a break reckless driving carries out higher penalties than this this may look really good on a brochure but make no mistake about it this targets and raises the burden on law-abiding citizens to exercise their constitutional rights. It makes no difference. It will not make any

[03:00:35] meaningful difference in fighting crime, in preventing homicides. This is a feel-good piece of legislation that's frankly going to do nothing but generate gun sales by people who are going to run out and hurry up. Rockingham, the gun show at the Rockingham County Fairgrounds is this weekend. If you want

to to find out what kind of impact this is having I invite you come out to Harrisonburg come to come to the the gun show and take a look at the crowd

[03:01:10] because you all because this legislation is generating a run on firearms in the Commonwealth of Virginia and you know it's not what is intended but let me tell you it's what happens every time we start seeing these pieces of legislation So, I have no illusions as to what's going to happen, but I urge you to take a look at what these guns really are.

[03:01:36] They are the most popular firearm category among law-abiding citizens in America. And we're telling a huge number of Americans, law-abiding Americans, you can't go out and buy these.

[03:01:53] Well, they're going to rush out and buy them for the next couple of months, let me tell you. recognizes a senator from King George Madam President if no one else wishes to speak senator has the floor I Listened to the Discussion that my friend from Eastern Fair Facts gave on the burdens of proof and it was interesting to me because The senator knows as well as I do that there are a lot of people charged for a lot of things And ultimately at the end of the day that burden is shifted to you despite the fact that our system of criminal justice is

[03:02:34] is you're innocent until proven guilty, oftentimes you're the one who has to prove your innocence. And so what concerns me the most about this, and I tried to highlight it when I talked about it initially, you are now going to have a lot of charges from people, from police of people who have not violated the law.

[03:02:59] the problem with that is if they have reasonable suspicion that you have a firearm and and I'm not talking about an M16 or what you all think is an assault style firearm this is going to be a rifle a rifle with certain characteristics that someone may have with evil intent or not but now you're giving carte blanche to investigators to investigate their home a number of other the things and everything that is in plain view is now subject to another

[03:03:35] charge and so it's just interesting to me as we talk about criminal justice reform and and trying to did these the myriad of bills that I've seen this session you now have given an arsenal to those that would end up being arrested and charged and I think there actually will be a lot of damage as a result of this law and a lot of it's going to be just to law-abiding citizens and I wish

[03:04:07] we would not pass this bill. The question is, shall Senate Bill 7, does the senator from Eastern Fairfax wish to speak? Madam President, speaking to the bill. Senator has the floor. So a couple of points I just want to count really quick.

[03:04:24] First of all, I would just submit that if one of, if somebody is encounters law enforcement in possession of one of these things, there's gonna be an investigation. And my guess is if I was a police officer, one of the first questions I would ask is, when did you buy it? If you say, well, I bought it yesterday, and it's after July 1 of 2027, 26, then they're going to get charged. If they're going to say, I bought it three years ago or whatever, they're not. And if somebody wants to try and prove otherwise, the government's going

[03:05:02] to have to go try and figure out when they bought it using sale records, a lot of other things to prove beyond a reasonable doubt when that gun got bought. So it's admit that from my perspective, I don't see the risk as being as great as everybody else says it's going to be. Second thing I would say, with regard to Senator from Rockingham says, or pointed out that three to four percent of all of America's 40 to 50,000

gun deaths a year, just point that out, by the way, just as many people are killed in this country with guns as there are in car accidents, three to four percent of them are with rifles.

[03:05:37] That's an accurate statistic. I Googled it and Gemini'd it and AI'd it myself. But I would note that assault rifles are involved in 33% of mass shootings. And it's the mass shootings that this country really stands out amongst the rest of the world.

[03:06:00] The rest of the world doesn't have this problem. But for some reason we do in America. And one of the reasons for that is because of the availability of weapons that make it really easy to not just hurt, but kill. Kill lots of people in mass quantities in small amounts of time.

[03:06:19] and if you i'm not i'm not a uh i'm not an assault rifle owner um i've never gone out and played with these weapons of war but i would note that the wounds that are caused by these weapons are incredible they're massive if you've ever read the descriptions of some of the mass shootings that have occurred these schools and the holes that they leave in humans that the bleeding out that it causes which is what caused all these people to die the data says that people are 0.72 times more likely to die and that's not percent i think that's 72 percent more likely or actually there's .72 more percent people killed when they're shot by these or i'm sorry it's 72 percent

[03:06:57] more killed when they're shot with these things i think it is than with regular firearms 25 percent of the active shooter of the claims in the fbi's active shooter database are with assault weapons they're not with um they're overrepresented the reason we need to take action on these things is that they because they are the weapon of choice for mass shooters they're the weapon of choice for people that want to kill lots of people at once there's reasons we ban other products like why can't you buy grand alcohol in virginia anymore you know why because it's increasingly lethal it

[03:07:33] causes a lot more people to die to do bad things to get hurt and so we restrict their availability these things are weapons of war they don't belong in the hands of citizens and we're taking a small step here today to stop the continued proliferation of these things but if you already have one it doesn't affect you and it shouldn't bother you. I hope we can pass it. The question is, shall Senate Bill 749 pass? All in favor of that motion will record their votes aye. Those opposed no. Are

[03:08:08] the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19. Senate Bill 749 passes.

[03:08:27] Senate Bill 802, a bill relating to clean energy and community flood preparedness, market-based trading program. The chair recognizes the senator from Hampton. Thank you, Madam President. I move the Senate Bill 802 pass in speaking to that.

[03:08:43] Senator has the floor. Senate Bill 802 clarifies existing law to make clear that Virginians' participation in the regional greenhouse gas initiative is statutorily required. I move that the bill pass. The chair recognizes the senator from Hanover.

[03:08:58] thank you madam president man president Ross to speak to the bill senator has the floor madam president I'm not going to be as loquacious as some of my colleagues have been in the last hour I think that we've been here but madam president this is a bill that impacts every Virginian who has a power bill every Virginian who stayed warm during this cold snap every Virginian who has to pay to use their stove every Virginian that has to pay to keep their refrigerator running, this bill will cost you more. Madam President, when Virginia was

[03:09:37] in this program, rate payers, people that had refrigerators and stoves and ovens and heat paid $923 million. That's what they paid. And Madam President, the cost over the last two years will have gone up, gone up 32%. So now Virginians will pay in this next year estimated over 460 million dollars a year. And if it goes up at the rate it's been going

[03:10:13] up, you'll add another 86 plus million a year to that number. So next year they'll pay well over 500, the year after that they'll pay well over 600, the year after that they'll pay well over 700. And you can keep going with the rate of increase to Virginians. Madam President, this bill does not make energy more affordable. This bill means that people paying for power will spend more. They will have less money in their pocket. It is quite simple. The

[03:10:49] decision to do this cost Virginians more money. It does not make their lives more affordable. Madam President, I hope that we will not move this bill forward. the chair recognizes the senator from hampton thank you madam president uh final remarks on this we're not here today to re-litigate reggie it already exists um during the time that we were participating in reggie carbon pollution dropped by 22 percent and virginia received 827 million

[03:11:26] dollars from the sale of its allowances we already statutorily participated in reggie until january 1st 2024 what this legislation does is simply say that we are obligated to participate in reggie as the statute requires the question is shall senate bill 802 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted

[03:11:58] do any senators desire to change their vote the clerk will close the roll eyes 21 nose 19 eyes 21 nose 19 senate bill 802 passes senate bill 832 a bill relating to vulnerable road user safety zones vulnerable road user safety improvement fund civil penalty reports the chair recognizes the junior senator from loudon thank you madam president i move the bill pass and speaking to that motion senator has the floor madam president senate bill 832 directs the department of transportation to develop criteria and recommendations for designing

[03:12:36] vulnerable road user safety zones in areas with high rates of pedestrian or cyclist crashes injuries or fatalities for the past five years in doing so we should consider crash data the 25 highway segments with the highest incidence potential safety improvements funding options and fiscal impacts the goal of guiding future targeted safety interventions for Virginia's most at-risk road users. I hope it's a will of the body to adopt this bill. Thank you Madam President. The question is, shall Senate Bill 832 pass? All in favor of

[03:13:15] that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? the clerk will close the roll. Ayes 27, noes 13. Ayes 27, noes 13. Senate bill 832 passes. For what purpose does the Senator from, senior Senator from Loudoun rise?

[03:13:45] Madam President, could we return to Senate bill 340 briefly? What page is that Senator? That is on page 11. Senator has the floor. Madam President, having voted on the prevailing side I ask that we reconsider the vote by which that bill passed the question is shall the vote by which Senate bill 340 passed be reconsidered all in favor of that motion will record their votes aye those

[03:14:22] opposed no are the senators ready to vote have all the senators voted do any senators wish to change their vote the clerk will close the roll I was 40 no zero. Ayes 40, nos zero. The bill is reconsidered.

Senior Senator from Loudoun. Thank you Madam President. Madam President, having previously explained the bill, I ask that the bill pass so that everyone gets an opportunity to vote in the way that they would like. The question is, shall Senate bill 340 pass? All in favor of that motion will record their votes aye, those opposed no. Are the

[03:14:58] senators ready to vote? Have all the senators voted? Do any senators wish to change their vote. The Clerk will close the roll. Ayes 27, noes 13. Ayes 27, noes 13. Senate Bill 340 passes. Uncontested calendar Senate bills on second reading. The Chair recognizes the Senator from Eastern Fairfax. Madam President, I move that all the Senate bills on second reading on the uncontested calendars on pages 19 through 26, Senate Bill 85 through 801 be advanced in Grossman in third reading in a block added option any amendments thereto. Any Senator desiring to

[03:15:36] To remove a bill from the block, please do so after the clerk has read the number of the bill. The question is, shall all Senate bills on second reading on the uncontested calendar on pages 19 through 26, Senate Bill 85 through Senate Bill 801 be engrossed and advanced to their third reading in the block after the adoption of the amendments thereto, that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill.

[03:16:06] All in favor of that motion will say aye. Any opposed, no. The ayes have it. The motion is agreed to. The clerk will read the number of the bills. Senate Bill 85, reported from the Committee on General Laws and Technology with a substitute. Senator from Western Henrico.

[03:16:24] Thank you, Madam President. Madam President, I move the committee substitute be agreed to. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Any opposed, no. the ayes. Have it. The substitute is agreed to. Senate Bill 122, reported from the Committee on Education and Health with the substitute. Senior Senator from Prince William. Madam President, can they go out of the block? Without objection, Senate Bill 122 comes out of the block. Senate

[03:17:01] Bill 178, reported from the Committee on Education and Health with the substitute. Senator from Hampton. Thank you, Madam President. I move that the substitute be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion we'll say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 203 reported from the Committee on Education and Health with a substitute. Senator from Roanoke. Thank you, Madam President. Madam President, I move that the Senate adopt the committee substitute

[03:17:39] from the Committee on Education and Health. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 239 reported from the Committee on Education and Health with a substitute. Senator from Baudetat. Thank you, Madam President. I move the committee substitute be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 264 reported from the Committee on

[03:18:18] education and health with the substitute senator from franklin county thank you madam president i now move that the committee substitute for senate bill 264 be agreed to the question is shall the substitute from the committee on education and health be agreed to all in favor of that motion will say aye any opposed no the ayes have it the substitute is agreed to senate bill 282 reported from the committee

on education and health senate bill 331 reported from the committee on Education and Health with a substitute. Senator from Western Prince William. Thank you Madam President. Madam President I move the committee substitute be agreed to. The question is shall the substitute from the Committee on

[03:18:56] Education and Health be agreed to? All in favor of that motion will say aye. Any opposed no. The substitute is agreed to. Senate Bill 379 reported from the Committee on Education and Health with a substitute. Senator from Northern Fairfax. Thank you Madam President I move the committee substitute be agreed to.

[03:19:15] The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion, we'll say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 418, reported from the Committee on Education and Health, and we have a floor amendment.

[03:19:34] Senator from Arlington. Madam President, I move that Senate Bill 418 be removed from the block. Without objection, Senate Bill 418 is out of the block. Senate bill 421 reported from the committee on education and health Senate bill 429 reported from the committee on education and health Senate bill 529 reported from the committee on education and health Senate bill 535 reported from the committee on education and health with amendments senator from Rockingham president moves that the committee committee

[03:20:13] amendments be agreed to the question is shall the amendments from the committee on Education and Health be agreed to. All in favor of that motion will say aye. Any opposed, no, the ayes have it. The amendments are agreed to. - Senate Bill 605, reported from the Committee on General Laws and Technology with the substitute.

[03:20:32] - Senator from Rockingham. - Madam President, move the substitute. - The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Any opposed, no, the ayes have it. The substitute is agreed to.

[03:20:47] Senate Bill 641, reported from the Committee on Education and Health. Senate Bill 656, reported from the Committee on Education and Health. Senate Bill 677, reported from the Committee on Education and Health.

[03:21:03] Senate Bill 692, reported from the Committee on Education and Health with a substitute. Senator from Roanoke. Thank you, Madam President. I move that the Senate adopt the Committee substitute from the Committee on Education and Health.

[03:21:21] The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion, we'll say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 724 reported from the Committee on Education and Health with a substitute.

[03:21:37] Senator Frambadita. Thank you, Madam President. I move the committee substitute be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion, we'll say aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 801, reported from the Committee on General Laws and Technology.

[03:22:00] The question is, shall the Senate bills now be engrossed in advance to their third reading? That is, all bills except for Senate Bill 122 on page 20 and Senate Bill 418 on page 22.

[03:22:16] All in favor of that motion will say aye. Any opposed, no. The ayes have it. The bills are now engrossed in advance to their third reading. On page 20, Senate Bill 122, reported from the Committee on Education and Health, with a substitute.

[03:22:33] Senator from, Senior Senator from Prince William. Thank you, Madam President. Move that bill go by for the day. Without objection, Senate Bill 122 goes by for the day. On page 22, Senate Bill 418, reported from the Committee on Education and Health, and we have a floor amendment.

[03:22:55] Senator from Arlington. Thank you, Madam President. Madam President, I move that we waive the reading of the floor amendment. The question is, shall the reading of the floor amendment be waived? All in favor of that motion will say aye. Aye. Any opposed, no.

[03:23:11] The ayes have it. The reading is waived. Senator from Arlington. Speaking to the floor amendment, Madam President. Senator has the floor. Thank you. The underlying bill permits therapeutic interchange of certain drugs.

[03:23:27] So that would enable a patient to acquire a drug that may be a generic brand and less expensive, as well as perhaps acquiring a drug that could replace a brand name drug that might be in a shortage situation.

[03:23:44] What the amendment does is it merely states that the prescribing healthcare professional can note that they must dispense as written And when they order a prescription, some of you probably know your prescribing health care practitioner can actually indicate whether generic drug can be used or whether the prescription must be given as written.

[03:24:10] And some health care providers wanted this amendment added, and I think it does no harm to the bill and in fact probably adds some needed explanation. with that madam chair um i would hope that the amendment passes the question is shall the floor amendment be agreed to all in favor of that motion will say aye aye any opposed no the ayes have it the floor amendment is agreed to senator from arlington thank you madam president i move that the bill be engrossed in advance to its third reading the question is shall senate bill 418

[03:24:46] on page 22 now be engrossed in advance to his third reading all in favor of that motion will say aye any opposed no the eyes have it the bill is engrossed and advanced regular calendar Senate bills on second reading Senate bill 642 a bill relating to health insurance pharmacies freedom of choice delivery of prescription drugs the substitute from the committee on commerce and labor has been adopted and there is a substitute from the committee on finance and appropriations senator from Washington County thank you madam president I'm moved to

[03:25:24] reconsider the vote by which the Senate agreed to the substitute from the Committee on Commerce and Labor? The question is, shall the vote by which the Senate agreed to the substitute from the Committee on Commerce and Labor now be reconsidered? All in favor of that motion will say aye. Aye. Any opposed, no. My apologies, this is a recorded vote. All in favor of the motion will record their votes, aye. And those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close

[03:26:00] the roll. Ayes 40, noes 0. The motion by which the substitute was agreed to is reconsidered. Senator from Washington. Thank you, Madam President. With the recommendation that it be rejected, I move that the substitute from the Committee on Commerce and Labor be agreed to. With the

recommendation that it be rejected, the question is, shall the substitute from the Committee on Commerce and Labor be agreed to. All in favor of the motion will say aye. Those opposed, no. No. I didn't quite hear. Can we repeat that? No way. The substitute from

[03:26:38] the Committee on Commerce and Labor is rejected. Senator from Washington. Thank you Madam President. I move the substitute from the Committee on Finance and Appropriation be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Any opposed, no. The substitute is agreed to. Senator from Washington. Thank you, Madam President. I move that the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 642 now be engrossed in advance to its third reading? All in favor of that motion will say aye.

[03:27:11] Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 388, a bill relating to affordable housing, religious organizations, and other non-profit tax-exempt properties reported from the Committee on Local Government with a substitute. Senior Senator from Prince William. Thank you Madam President. Move that that bill go by for the day for floor amendments tomorrow. Without objection, Senate Bill 388 goes by for the day. Senate Bill 94, a bill relating to siting of data centers, property zoned for industrial use, reported from the Committee on Local Government with amendments, from the

[03:27:51] Committee on Finance and Appropriations with the substitute and there is one floor amendment. Senator from Alexandria. I would move that SB 94 with the patrons permission go by for the day. Without objection Senate Bill 94 goes by for the day. Senate Bill 314 a bill relating to tourism improvement districts transient occupancy tax Arlington County reported from the Committee on Finance and Appropriations and there is a floor substitute. Senator from Alexandria. I would ask that that bill also go by for the day. Without

[03:28:25] objection, Senate Bill 314 goes by for the day. Senate Bill 15, a bill relating to driver improvement clinics, motorcycle driver improvement clinics, motorcycle driver improvement clinic fund created. Reported from the Committee on Finance and Appropriations with the substitute. Senator from Roanoke. Madam President, I move that that bill go by for the day. Without objection, Senate bill 15 goes by for the day Senate bill 115 a bill relating to concealed handgun permits reciprocity with other states the committee substitute from the

[03:29:03] committee for courts of justice has been adopted and there are amendments from the committee on finance and appropriations and there is one floor amendment senator from Western Fairfax madam president if I can we withdraw the floor amendments without objection the floor amendments are withdrawn great and I'd like to ask that we agreed to the amendments from the committee on finance and appropriations senator do you wish to first read no you first adopt

[03:29:37] the substitute from I thought we already did that my apologies I move the amendments from a committee on finance the question is shall the amendments from committee on finance and appropriations now be agreed to all in favor of that motion will say aye any opposed no the ayes have it the amendments are agreed to senator from western fairfax i move that the bill be engrossed and advanced to its third reading the question is shall senate bill 115 now be engrossed and advanced to its third reading all in favor of that motion will say aye

[03:30:11] any opposed no the bill is engrossed and advanced senate bill 670 a bill relating to automated driving systems reported from the committee on transportation with amendments from the committee on finance and appropriations with the substitute and there is a floor substitute senator from central fairfax madam president could that bill go by for the day without objection senate bill 670 goes by for the day senate bill 29 budget bill amends and reenacts chapter 725 of the acts of assembly

[03:30:46] of 2025 which appropriates the public revenues for two years ending respectively on june 30th 2025 and june 30th 2026 reported from the committee on finance and appropriations with amendments and the amendments are on your desks senator from portsmouth thank you madam president madam president i move that the committee amendment be agreed to and speaking to the amendments senator has the floor madam president members uh the packages as i indicated on the front of your desk i have previously spoken about redistricting and my support of the maps

[03:31:22] and my support for the bonuses for teachers and state employees to be one thousand five hundred dollars the amendments also conform us to provisions of federal tax law so taxpayers can file state taxes without a delay madam president i reiterate my motion that the committee amendments be agreed to senator from hanover thank you madam president madam president could amendment number two seventy seven number one s amendment number seven four dash five point zero four number one s

[03:31:59] amendment number eight four dash one four number one s and amendment number nine four dash one four number two s come out of that block senator can you repeat those amendment numbers yes madame president the second amendment 77 number one s that's the delayed reporting for election audits i think it's a sixth amendment which relates to funding abortion services 4-5.04 number one s

[03:32:36] the amendment number eight which is the redistricting of virginia congressional districts Amendment 4-14, number 1S, and then Amendment 9, which is not conforming to some business deductions, and that's 4-14, number 2S.

[03:33:02] The Senate will be at ease. To the Senate Finance and Appropriations staff, all in favor of that motion will say, all in favor of that motion will record their votes aye.

[03:33:55] those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role as 40 no zero eyes 40 no zero the privileges of the floor are granted to the members of the Senate Committee on Finance and Appropriations the Senate will be at

[03:34:19] amendment 77 number 1s the question is shall amendment number 77 1 number 1s be agreed to

[03:41:26] all in favor of that motion will say aye any opposed no there being the chair is uncertain and this will be a recorded vote all in favor of agreeing to the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[03:41:57] desire to change their vote. The clerk will close the roll. Ayes 21, nos 19. Ayes 21, nos 19. Amendment 77, number 1S, is agreed to. Amendment 4-5.04, number 1S. Madam President. Senator from Charlottesville.

[03:42:19] Madam President, I move that this amendment pass. It allows for coverage for abortion services for people who are on the low end of the income scale get their services to Medicaid or through health departments the question is shall amendment 4 - 5.04 number 1 s pass all in favor of that motion will say aye any opposed no the ayes have it the amendment passes seeing at least eight hands there will be a

[03:42:55] recorded vote all in favor of agreeing to the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 19 ayes 21 nose 19 amendment 4-5.04 number 1s passes amendment 4-14 number 1s senator from portsmouth thank you madam president madam president i have previously spoken about redistricting and my support of the maps

[03:43:35] and my support for bonuses for teachers and state employees to be fifteen hundred dollars and so with that madam president i move that the committee amendment be agreed to the question is shall the committee amendment 4-14 number 1s be agreed to all in favor of that motion we'll say aye any opposed no the ayes have it the amendment is agreed to seeing at least eight hands there will be a recorded vote all in favor of agreeing to the motion will record their votes aye those opposed no are the senators ready to

[03:44:12] vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 noes 19 ayes 21 noes 19 the amendment is agreed to amendment 4-14 number 2s Senator, senior senator from Prince William.

[03:44:36] Thank you, Madam President. I move that amendment 4-14-2-S be agreed to in speaking to the motion. Senator has the floor. Thank you, Madam President. This includes language to conform the state tax provisions under H.R. 1 and sets fixed conformity date of December 31st of 2025.

[03:44:52] It allows Virginia to conform to the changes made to the federal law with the following exemptions to provisions related to special depreciation of real property tax used in domestic qualified production, new limitations on itemized deductions, the state maintains the P's limitation, domestic research and experiment expenditures, including full expensing, transitional and catch-up deduction provisions, and increased dollar limitations for expenses of certain depreciable business assets.

[03:45:21] As a simple alternative to deconforming regarding 163J, this amendment reduces the state reduction for disallowed business interest at the federal level from 50 to 20 percent. In certain tax cuts and jobs acts, provisions expire in 2021, making the 163J deduction calculation less generous at the federal level.

[03:45:42] Under H.R. 1, the more generous provisions were reinstated, and Virginia can reduce the state-specific deduction for disallowed business interest. Business may take the interest disallowed by the 163J limitation as an expense in later years, which would flow to the state return and move its passage.

[03:46:03] Senator from Hanover. thank you madam president madam president speaking to the amendment briefly senator has the floor madam madam president uh i won't belabor the point but this is de-conforming from the federal government it'll cost virginian particularly in the business arena about 99.3 million dollars and that's the reason we took it out of the list is because of the cost to taxpayers making their businesses less affordable the question is shell amendment for senator from

[03:46:38] Prince William man president to simplify maybe the the longer explanation when the original tax cut bill passed Virginia was matching what we're doing today so we're returning to when we originally

passed this as the federal portions of it became less generous Virginia became more generous and so we We are offsetting the balance between the 50 and the 20.

[03:47:03] Since the federal government is now higher, we are now returning to where we were when the original jobs tax acts passed years ago. And so I would submit to the body that we are balancing the same way we did in prior budgets and appreciate the body's time with it.

[03:47:21] The question is, shall amendment 4-14 number 2S pass? All in favor of that motion, we'll say aye. Any opposed, no. The ayes have it. amendment is agreed to Senate bill 273 a bill relating to Virginia residential landlord and tenant act eviction diversion program eligibility the chair

[03:47:50] recognizes the Senate will be at ease the chair recognizes the senator from

[03:48:38] Hampton my president I move that the substitute be agreed to the question is shall the substitute from the committee on general laws and technology be agreed to all in favor of that motion will say aye any opposed no the ayes have it. The substitute is agreed to. Senator from Hampton. Thank you, Madam President. I move that the bill be engrossed and advanced to his third reading. The question is, shall the bill now be engrossed and advanced to his third reading? All in favor of that motion will say aye. Any opposed, no. The

[03:49:16] ayes have it. The bill is engrossed and advanced. Senate Bill 294, a bill relating to Virginia Residential Landlord and Tenant Act, Tenant Records, Submetering, Energy Allocation, and Ratio Utility Billing Systems, reported from the

[03:49:31] Committee on General Laws and Technology with the substitute. Senator from Eastern Henrico. Thank you, Madam President. I move the committee substitute be adopted. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Any opposed? No. The ayes have it. The substitute is agreed to. Senator from Eastern Henrico. Thank you, Madam President. I move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 294 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The bill is

[03:50:08] engrossed and advanced. Senate Bill 313, a bill relating to Virginia Residential Landlord and Tenant Act, prohibited provisions, fees for maintenance and periodic payments. Reported from the Committee on General Laws and Technology with a substitute. Senator from Alexandria. Thank you, Madam President.

[03:50:25] First I move the committee substitute. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye aye any opposed no the ayes have it the substitute is agreed to senator from alexandria now i move that the bill be engrossed in advance to its third constitutional reading the question is shall senate bill 313 now be engrossed in advance to his third reading all in favor of that motion will say aye any opposed no the bill is engrossed and advanced senate bill 332 a bill to direct the department of health to convene a work group to develop policies for the the safe administration of medical marijuana

[03:51:04] to terminally ill patients. Reported from Committee on Education and Health with the substitute. -Senator from Arlington. -Thank you, Madam President. Madam President, I move that the substitute be agreed to. -The question is, shall the substitute from the Committee on Education and Health be agreed to?

[03:51:20] All in favor of that motion, we'll say aye. -Aye. -Any opposed, no. The ayes have it. The substitute is agreed to. Senator from Arlington. -Thank you, Madam President. I move that the bill be engrossed in advance its third reading the question is shall senate bill 332 now be engrossed and advanced to his third reading all in favor of that motion will say aye any opposed no the ayes have it the bill is engrossed and advanced Senate bill 373 a bill relating to Virginia Residential Landlord and Tenant Act non-compliant as defense to action for possession for non-payment of rent reported from the

[03:51:58] committee on general laws and technology and we have one floor amendment senator from Northern Fairfax. Thank you, Madam President. I move the floor amendment be waived, the reading of the floor amendment be waived. The question is, shall the reading of the floor amendment be waived? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The reading of the floor amendment is waived. Thank you, Madam President. I move the floor amendment to be agreed to and speaking very briefly to that motion. Senator has the floor. Thank you, Madam President this bill has just the amendment simply clarifies what is law

[03:52:32] which is that in the event that a renter and their landlord are and try it go to trial the the renter must pay all of their rent and nothing could change that fact and I move that we pass the amendment the question is shall the floor amendment be agreed to all in favor of that motion will say aye any opposed no the floor amendment is agreed to Senator from Northern Fairfax thank you madam president I move that the bill be engrossed and passed to its third constitutional and then reading the question is shall Senate bill 373 now be

[03:53:11] engrossed in advance to his third reading all in favor of that motion will say aye any opposed no the ayes have it the bill is engrossed and advanced Senate bill 495 a bill relating to emergency substantial risk order allowable petitioners reported from the committee for courts of justice with the substitute senator from charlottesville madam president i move that the substitute from the committee on courts justice be agreed to the question is shall the substitute from the committee for courts of justice be agreed to all in favor of that motion will say aye any opposed no the ayes have it the substitute is

[03:53:48] agreed to senator from charlottesville madam president i move that the bill be engrossed in advance to a third constitutional reading the question is shall senate bill 495 now be engrossed in advance to his third reading all in favor of that motion we'll say aye aye any opposed no the bill is engrossed and advanced senate bill 596 bill relating to contraception right to contraception applicability enforcement reported from the committee on education and health with the a substitute. Senator from Eastern Fairfax. Thank you, Madam. I'm sorry, Eastern Prince William.

[03:54:23] I represent both, but Madam President, I move that the education and health substitute be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Any opposed? No. The ayes have it. The substitute is agreed to. Senator from Eastern Prince William. Thank you, Madam President. I move that the bill be engrossed in advance to its third reading. The question is, shall the bill, Senate Bill 596, now be engrossed in advance to its third reading? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced.

[03:55:00] Senate Bill 785, a bill relating to Department of Education, teacher, other instructional personnel, and support staff shortages. Data collection and reporting. Reporting of demographic data and reason for exits required reported from the committee on education and health with the substitute

senator from Eastern Prince William thank you madam president I move that the education and health substitute be agreed to the question is shall the substitute from the committee on education and health be agreed to all in favor of that motion we'll say aye any opposed no the ayes have it the substitute is agreed to senator from Prince William thank you

[03:55:38] madam president madam president I move that the bill be engrossed in advance to his third reading. The question is, shall Senate Bill 785 now be engrossed and advanced to his third reading? All in favor of that motion, we'll say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 803, a bill relating to Virginia fair housing law, discriminatory housing practices, quid pro quo harassment, reported from the Committee on General Laws and Technology. Senator from Charlottesville. Madam President, I move that the bill be engrossed advance to a third constitutional reading the question is shall senate bill 803 now be engrossed

[03:56:15] and advanced to its third reading all in favor of that motion we'll say aye aye any opposed no the ayes have it the bill is engrossed and advanced uncontested calendar senate bills on first reading the chair recognizes the senior senator from prince william thank you madam president madam president i move that all senate bills on the first street and the uncontested and regular calendars on page 35 through 47 on SB 225 through Senate Bill 834 that the rules be suspended in the first constitutional reading of the titles be dispensed with. The question is shall the rules be suspended and the first constitutional reading of the titles of Senate bills on the uncontested and

[03:56:53] regular calendars pages 35 through 47 Senate Bill 225 through Senate Bill 834 be dispensed with. All in favor of that motion will record their votes aye. Those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 40 no zero eyes 40 no zero the reading of the titles is dispensed with senator from Eastern Fairfax and the president asked all those bills goodbye for the day the question is shall the Senate bills on the uncontested and regular calendars

[03:57:32] now on their second reading be passed by for the day all in favor of that motion will say aye any opposed no the ayes have it the bills will go by for the day uncontested calendar senate joint resolution on second reading sjr 74 confirming appointments by the governor of certain persons communicated to the general assembly january 16th 2026 reported from the committee on privileges and elections the chair recognizes the junior senator from virginia beach Madam President, I move that the bill be engrossed and advanced to his third reading.

[03:58:10] The question is, shall SJR 74 now be engrossed and advanced to his third reading? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Regular calendar, Senate Joint Resolutions on second reading.

[03:58:26] Senate Joint Resolution 69, confirming appointments by the governor of certain persons communicated to the General Assembly October 1, 2025, reported from the Committee on Privileges and Elections with amendment. Junior Senator from Virginia Beach.

[03:58:42] Thank you, Madam President. I move that the committee amendment be rejected. With the recommendation that the amendment from the Committee on Privileges and Elections be rejected, the question is, shall the amendment be agreed to?

[03:59:00] All in favor of that motion will say aye. Those opposed, no. The noes have it. The amendment is rejected. Senator from Virginia, junior senator from Virginia Beach. Madam President, I move that SJR 69 be engrossed and advanced to his third reading.

[03:59:17] The question is, shall SJR 69 be engrossed and advanced to his third reading? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Joint Resolution 70, confirming appointments by the governor, certain persons communicated to the General Assembly August 13th, 2025.

[03:59:41] Reported from the Committee on Privileges and Elections with amendments, we have five floor amendments. Junior Senator from Virginia Beach. Madam President, I move that the committee amendments with the exception of amendment number 13 be agreed to.

[03:59:58] The question is, shall all the committee amendments from the Committee on Privileges and Elections be agreed to in a block except for Number 13, line 443.

[04:00:16] All in favor of that motion will say aye. Aye. Any opposed no? The aye. The chair is not certain. All in favor of agreeing to the motion will record their votes aye.

[04:00:35] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 19. Ayes 21, noes 19.

[04:00:52] The amendments from the Committee on Privileges and Elections, with the exception of number 13, are agreed to. Thank you. Senator, junior senator from Virginia Beach. Madam President, with the recommendation that it be rejected, I move that amendment 13 be agreed to.

[04:01:08] The question, with the recommendation that it be rejected, the question is, shall the amendment number 13 be agreed to? All in favor of the motion will say aye. Any opposed, no.

[04:01:23] Oh, no. the noes have it the amendment number 13 is rejected junior senator from virginia beach madam president i move that the reading of the floor amendments be waived the question is shall the reading of the floor amendments be waived all in favor of that motion will say aye any opposed no the eyes have it the reading of the floor amendments is waived junior senator from virginia beach madam president i move that the floor amendments should be agreed to speaking to that motion? Senator has the floor. Thank you, Madam President. On line 366, introduce strike all of

[04:02:02] line 366. On line 375, introduce strike all of lines 375 and 376. And on line 453, introduce strike all of lines 453 and 54. The question is, shall the floor amendments now be agreed to? All in favor of that motion we'll say aye aye any opposed no the eye the eyes have it the floor amendments are

[04:02:37] agreed to senator from junior senator from virginia beach senator from charlottesville madam president madam president i move that the four amendments um be be with the reading of the four amendments be waived the question is shall the reading of the floor the deeds floor amendments be waived all in favor of that motion will say aye aye any opposed no the ayes have it the reading of the floor amendments is waived senator from charlottesville madam president um this um the

[04:03:14] purpose of this these four amendments are to put two people that governor youngkin had appointed to the state board of election or the the chef back on chef they were inadvertently taken off And I hope you'll agree to the amendment. The question is, shall the deeds floor amendments be agreed to?

[04:03:35] All in favor of the motion will say aye. Aye. Any opposed, no. The ayes have it. The floor amendments are agreed to. The junior senator from Virginia Beach. Madam President, I move that SJR 70 be engrossed in advance to his third reading.

[04:03:53] The question is, shall SJR 70 now be engrossed in advance to his third reading? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The SJR 70 is engrossed and advanced.

[04:04:11] - Senate Joint Resolution 71, confirming appointments by the governor of certain persons communicated to the General Assembly January 12th, 2026. Reported from the Committee on Privileges and Elections with Amendments, and there is one floor amendment.

[04:04:27] - Junior Senator from Virginia Beach. - Thank you, Madam President. I move the committee amendments to be agreed to. The question is, shall the amendments from the Committee on Privileges and Elections be agreed to? All in favor of that motion will say aye.

[04:04:43] Any opposed, no. The amendments are agreed to. Junior Senator from Virginia Beach. Madam President, I move the reading of the floor amendments be waived. The question is, shall the reading of the floor amendment be waived? All in favor of that motion will say aye.

[04:05:00] Aye. Any opposed, no. The ayes have it. The reading of the floor amendment is waived. Junior Senator from Virginia Beach. Madam President, I move the floor amendments be agreed to and speaking to that motion. Senator has the floor. Thank you, Madam President. On line 92, introduce, strike all of lines 92, 93, and 94.

[04:05:21] The question is, shall the floor amendment be agreed to? All in favor of that motion, we'll say aye. Aye. Any opposed, no. The ayes have it. The floor amendment is agreed to. - Junior Senator from Virginia Beach.

[04:05:37] - Madam President, I move the resolution be engrossed in advance to his third reading. - The question is, shall SJR 71 now be engrossed in advance to his third reading? All in favor of that motion will say aye. Any opposed, no. The ayes have it. The resolution is engrossed and advanced.

[04:05:54] - Senate Joint Resolution 72, confirming appointments by the governor of certain persons communicated to the General Assembly May 30th, 2025, Reported from the Committee on Privileges and Elections with amendments. Junior Senator from Virginia Beach.

[04:06:09] Thank you, Madam President. I move that committee amendments be taken up in a block with the exception of number line four and to be agreed to. Number four? Number four. The question is, shall the amendments from the Committee on Privileges and Elections be agreed to in a block with the exception of amendment number four, line 189?

[04:06:37] All in favor of that motion will say aye. Any opposed, no. The ayes have it. The amendments are agreed to in a block with the exception of number four. Senator from Virginia Beach.

[04:06:54] Madam President, I move the committee amendments be agreed to with number four. I move number four amendment be agreed to.

[04:07:10] The question is, shall amendment number four, line 189, be agreed to? All in favor of that motion will say aye.

[04:07:27] Aye. Any opposed, no. Seeing eight hands, there will be a recorded vote. All in favor of agreeing to the motion, which is to accept amendment number four, line 189, All in favor of agreeing to that motion will record their votes aye.

[04:07:58] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 20, noes 19.

[04:08:15] Ayes 20, noes 19. The amendment number four is agreed to. Senator, junior senator from Virginia Beach. Thank you, Madam President. I move that the bill be engrossed in advance to its third reading. The question is, shall SJR 72 now be engrossed and advanced to his third reading?

[04:08:36] All in favor of that motion will say aye. Any opposed, no. The ayes have it. The resolution is engrossed and advanced. Senate Joint Resolution 73, confirming appointments by the governor of certain persons communicated to the General Assembly on December 1st, 2025, reported from the Committee on Privileges and Elections with amendments.

[04:09:01] Junior Senator from Virginia Beach. Thank you, Madam President. I move that committee amendments be agreed to. The question is, shall the amendments from the Committee on Privileges and Elections be agreed to? All in favor of that motion will say aye. Aye. Any opposed? No.

[04:09:16] The ayes have it. The amendments are agreed to. Junior Senator from Virginia Beach. Thank you, Madam President. I move that SJR 73 be engrossed in advance to his third reading. The question is, shall SJR 73 now be engrossed in advance to his third reading? to his third reading all in favor of that motion will say aye any opposed no the motion is agreed to regular calendar Senate joint resolutions on first reading Senate joint resolution 23 directing the joint legislative audit and review Commission to study the need for and feasibility of creating a secretariat

[04:09:51] of rural affairs in the Commonwealth report Senate joint resolution 26 directing the joint legislative audit and review Commission to study the Potential Impacts of Expanded Discretionary Parole Eligibility Report. Senator from Eastern Fairfax.

[04:10:15] Inque the Clerk, it's time for Commerce and Labor. Yes, sir. Great, thanks. Is there any other business to come before the Senate? Senator from Charlottesville. Just an announcement.

[04:10:32] There are 29 bills now on the docket for Commerce and Labor. Two bills will go by for the day. Nothing else, I hope, will go by for the day. We're going to have a full evening. And I think Senator Surveille is going to buy a pizza or steak or something for us. But we're going to get through it as quickly as we can.

[04:10:52] And we're not waiting for 15 minutes. So as soon as you can get over to the committee room, we're going to start to work. The chair recognizes the senator from Richmond City. Thank you, Madam President. I rise for a brief point of personal privilege.

[04:11:09] Senator has the floor. Yes, ma'am. On yesterday evening, Morgan Moses, an office of tackle for the New England Patriots who attended Meadowbrook High School in Senate District 15 in Chesterfield, Virginia, played college football at the University of Virginia, and was selected in the third round of the 2014 draft. With more than a decade in the NFL playing for the Commanders, the Jets, and the Ravens, Moses has now become a respected leader on the Patriots offensive line. I want to congratulate Mr. Morgan Moses on competing on football's biggest stage in Super Bowl

[04:11:45] 60 with the new england patriots and representing chesterfield county and the commonwealth very well thank you madam president thank you senator the chair recognizes the senator from orange thank you madam president i rise for a point of personal privilege senator has the floor madam president i want to speak today not as naughty log not as a partisan but as a reasonable and prudent person madam president that same standard of our courts use every day to decide what responsible behavior looks like. A reasonable prudent person plans ahead. A reasonable prudent

[04:12:24] person does not assume danger will never come. And a reasonable prudent person does not outsource the safety of their family entirely to luck, timing, or the hope that someone else arrives in time. That is what the gun debate today is really about. The Second Amendment, it's not about bravado. It's not about intimidation. It's about responsibility. Personal responsibility madam president and the sober recognition that evil exists today emergencies happen in seconds matter when someone proposes to take away or severely restrict the right of law-abiding citizens

[04:12:59] to defend themselves the prudent question is simple what would a reasonable person a reasonable prudent person do when confronted with real world threats well madam president a reasonable prudent person locks their doors not because they expect to break in every night but because prevention matters. Madam President, a reasonable, prudent person buys insurance not because they want disaster, but because preparation is wisdom. And a reasonable, prudent person maintains the lawful means to protect their family, not because they seek violence, but because they value life. Madam

[04:13:35] President, I am a parent. I am a spouse. I'm responsible for the people under my roof. And if danger comes into my home, I cannot tell my family, hold on. Help is on the way. Madam President, I know a police officer police do heroic work but they are minutes away when seconds count the first responder to any threat is the individual individual already on the scene that's not ideology that's the reality in which we live history also teaches us something's very sobering across the world even right now when ordinary people are disarmed whether by invasion like the

[04:14:10] russians in ukraine breakdown of order or government failure the most vulnerable suffer first this lesson is not fear-mongering, it's just prudence. A free society is safest when its citizens are not helpless, when deterrents exist at every level, and when criminals know their victims are guaranteed not to be defenseless. The right to keep and bear arms is not about replacing the rule of law, it's about reinforcing it. Armed law-abiding citizens are not the problem, they are a stabilizing force. They are hunters, veterans, mothers, fathers, sons, daughters and neighbors who respect the law and understand restraint.

[04:14:50] A reasonable, prudent society does not punish responsibility. It does not confuse criminal misuse with lawful ownership, and it does not strip rights from those who have done nothing wrong in the name of safety only to make the innocent more vulnerable.

[04:15:06] Virginia's tradition has always been one of liberty balanced with duty. We believe in accountability, we believe in training, we believe in law and order, but But we also believe that a free people retain the ultimate responsibility of their own protection. Once a right is surrendered, it is rarely returned.

[04:15:23] Once citizens are rendered dependent, they are no longer fully free. So I stand here today, Madam President, to say this clearly: defending the Second Amendment is not radical. It's reasonable, it's prudent, it's moral, it's right, and most importantly, it's about ensuring that our families and our

communities and the Commonwealth never find themselves unable to stand when it matters most. Thank you, Madam President. May Virginia always remain free, responsible, and prepared. Thank you, Senator. The chair reminds the members that it's the decorum of the Senate to remain seated

[04:15:57] during points of personal privilege and to listen to our colleagues. The chair calls on the senator from Colonial Heights. Thank you, Madam President. Brief announcement. Senator has the floor. We have two more practices before our game against the house our next practice is tomorrow night 7 p.m. MLK middle school up in Churchill I think we have a point guard and maybe even a shooting guard and so we're gonna work to carry on the legacy of our win last year but we need everybody to come out who wants to play and get some reps in

[04:16:34] thank you madam president thank you senator chair recognizes the senator from Eastern Fairfax rise for announcement senator has the floor thank Madam President, first of all, I'm not buying pizza, but I might buy something else, but-- I'm not sure if you guys see this vegetarian by steak.

[04:16:56] But Madam President, one other announcement, I just want to remind everybody that tomorrow, we're going to take everything that's second, read, uncontested, all the way through to final passage. So please be ready to either pull bills for final passage or debate an uncontested bill that came out of committee, because how this process is going to roll start tomorrow as is our normal practice thank you the chair recognizes the senator from Eastern Henrico thank you so much madam president I rise for a point of personal privilege senator has the floor thank you madam president madam president and 2019 Virginia's own Travion Henderson won state title as a

[04:17:34] Hopewell Blue Devil and yesterday he played in the Super Bowl madam chair madam president excuse me Travion Henderson is a running back and kickoff returner for the New England Patriots. In 2025 the Patriots drafted Henderson in the second round of the NFL Draft. During his college career at Ohio State Henderson was recorded setting running back and team captain and in 2024 he helped lead the Buckeyes to the college football playoffs national championship.

[04:18:02] Madam President he is the first Patriot to have 50 yard touchdown runs in the same game and his 69 yard run is the longest run since running back Cedric shaw madam president i am very excited to congratulate travion henderson and participating in yesterday's super bowl and i wanted to make sure that we're proud as a commonwealth as the accomplishments that he has made thank you senator the chair recognizes the senior senator from fairfax thank you madam president rise for an announcement senator has the floor our basketball team is coming together we just need the financing uh to make it happen you had a chance this weekend

[04:18:39] to go home and find your checkbooks. And $250 for cancer research at the Massey Cancer Center. Let's go Senate and let's get the financing to Massey this year. We're open for business 24 hours a day. Room 610, drop your check off. Thank you. Thank you, Senator. Senator from Isle of White. Thank you, Madam President. I rise for brief announcement. Senator has the floor. Thank you, Madam President. I know tomorrow is going to be really long on the floor, but I want to remind everybody tomorrow is brunswick stew day on capitol square so as you're passing through say thank you to the brunswick county stew crew team that will be here and maybe get an extra cup of

[04:19:18] stew to enjoy on the floor thank you madam president thank you senator is there any other business the clerk will report any announcements on the desk today monday february 9 2026 committee on commerce and labor will meet immediately upon adjournment in senate room a gab the finance and

Appropriations Subcommittee on Economic Development and Natural Resources will meet at 4:30 p.m. in the Finance and Appropriations Room, 13th Floor, GAB. The Northern Virginia

[04:19:50] Delegation Caucus will meet at 5:00 p.m. in House Room 1000, 10th Floor, GAB. Tuesday, February 10th, 2026. The Finance and Appropriations Subcommittee on General Government will meet at 7:30 a.m. in and the Senate Finance and Appropriations Room, 13th Floor, GAB.

[04:20:10] The Finance and Appropriations Subcommittee on Resources will meet at 8:30 a.m. in Senate Room A, GAB. The Committee on Finance and Appropriations will meet at 9:30 a.m. in Senate Room A, GAB. This is a time change.

[04:20:25] Committee on Finance and Appropriations will meet at 9:30 in Senate Room A, GAB. The Democratic Caucus will meet at 11:15 in Senate Room 1 of the Capitol. The Republican caucus will meet at 11.30 a.m. in Senate Room 2 of the Capitol. The chair recognizes the senator from Portsmouth.

[04:20:46] Thank you, Madam President. Madam President, I move that the Senate do now adjourn until 12 noon tomorrow. The question is, shall the Senate now adjourn until 12 noon tomorrow? All in favor of that motion, we'll say aye. Any opposed, no. The ayes have it. The motion is agreed to.

[04:21:01] The Senate stands adjourned until 12 noon tomorrow.

[04:21:24] - Senate of Virginia, Richmond, Virginia.

[04:22:56] Senate chamber.

[04:24:33] This is the Senate of Virginia, Richmond, Virginia.

[04:26:01] Senate chamber.